

HOUSE No. 2024

The Commonwealth of Massachusetts



House of Representatives, February 24, 2025.

**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

1 *Ordered*, That the rules of the House of Representatives for the years 2025-2026 be
2 adopted, as follows:

3 SPEAKER.

4 1. The Speaker shall take the Chair at the hour to which the House stands adjourned, call the
5 members to order, and, on the appearance of a quorum, proceed to business. [1.]

6 1A. The House shall not be called to order before the hour of ten o'clock A.M. nor meet
7 beyond the hour of midnight unless by unanimous consent of the Members present. If there is
8 unanimous consent to continue meeting past midnight then, the House shall return to the
9 business then pending; and if no business was pending, to the next order of business. However, if
10 there is not unanimous consent of the members present to meet beyond the hour of midnight, the

11 Speaker shall forthwith, and without further debate, adjourn or recess the House to a time not
12 earlier than ten o'clock A.M. on the next succeeding calendar day.

13 [Adopted Jan. 12, 1983; Amended Jan. 11, 1985; Jan. 12, 1987; Jan. 14, 1997; May 16,
14 2000.]

15 2. The Speaker shall preserve decorum and order in the House Chamber. While in the House
16 Chamber, members, staff and guests shall be required to dress in proper and appropriate attire
17 and be courteous and professional when using electronic devices. The committee on Operations,
18 Facilities and Security, in consultation with the Speaker, may establish policies and procedures
19 for the preservation of decorum and order in the galleries of the House Chamber to ensure that
20 the House may conduct its business without undue disruption.

21 Members, staff and guests shall not take photographs or videos of, or in, the House Chamber
22 during formal or informal sessions unless otherwise permitted by this Rule. Members may take
23 photographs at their assigned seats in the chamber during formal or informal sessions; provided,
24 however, that any photographs or video taken by members during formal or informal sessions
25 shall not include images of any other member, staff or guest without their express written
26 consent.

27 The Speaker may permit photographs or videos during special occasions, which shall include,
28 but shall not be limited to, swearing-in ceremonies and addresses by constitutional officers or
29 other dignitaries. The use of audio-visual aids including, without limitation, videos, computers,
30 posters, displays or charts shall be permitted only upon approval of the Speaker.

The Speaker also may speak to points of order in preference to other members; and shall decide all questions of order, subject to an appeal to the House. [2.] (2.) [With regard to appeals, see Rule 77.]

[Amended Jan. 11, 1985; Jan. 9, 2003; Jan. 20, 2011; Jan. 29, 2015; Jan. 30, 2019.]

3. The Speaker shall declare all votes, subject to verification as hereinafter provided. [3.] (55.)
[See Rules 49 to 53, inclusive.]

[Amended Jan. 11, 1985.]

4. In all cases the Speaker may vote. [4.] (3.)

[Amended Jan. 11, 1985.]

4A. There shall be a Speaker pro Tempore. The Speaker pro Tempore shall assist the Speaker in the coordination of policy development and the ceremonial functions of the House and shall perform such duties assigned to them by the Speaker. Upon a vacancy in the office of Speaker, the office of Speaker pro Tempore shall be considered vacant.

[Adopted Jan. 26, 2005, Amended, Jan. 23, 2007; Jan. 30, 2019.]

4B. (a) As used in this Rule, the following words shall have the following meanings:-

“Earned income”, income derived from salaries, wages, tips and commissions for performing services as an employee of an employer.

“Unearned income”, all other income that is not earned income.

(b) The Speaker shall not receive earned income for:

(1) affiliating with or being employed by a firm, partnership, association, corporation or other entity that provides professional services involving a fiduciary relationship;

(2) permitting their name to be used by such a firm, partnership, association, corporation or other entity;

(3) receiving compensation for practicing a profession that involves a fiduciary relationship; or

(4) serving as an officer or member of the board of an association, corporation or other entity.

(c) The provisions of this rule shall take effect on August 1, 2017.

[Added Feb. 2, 2017; Amended Jan 30, 2019.]

5. The Speaker may appoint a member to perform the duties of the Chair. In the event the Speaker fails to appoint a member to perform the duties of the Chair, the Speaker pro Tempore shall be the Acting Speaker until the Speaker otherwise provides or until a vacancy in the office of Speaker occurs. In the event that the Speaker pro Tempore is absent or is unable to perform the duties of Acting Speaker, the Majority Leader, the Assistant Majority Leader, the Second Assistant Majority Leader or other designee shall be the Acting Speaker. [7.] (4.)

[Amended April 18, 1979; Jan. 11, 1985; Jan. 14, 1997; Jan. 26, 2005.]

6. In case of a vacancy in the office of Speaker, or in case the Speaker or the member named by said Speaker in accordance with the preceding rule is absent at the hour to which the House stands adjourned, the senior member present shall call the House to order, and shall preside until a Speaker is elected, which shall be the first business in order. [8.] (5.)

[Amended Jan. 11, 1985, Amended, Jan. 23, 2007.]

7. At the beginning of the first year of the two-year General Court, the Speaker may, unless the House otherwise directs, appoint a Chaplain; and the Speaker may fill any vacancy in the office of Chaplain. [7A.] (4.)

[Amended Jan. 11, 1985; Jan. 29, 2015.]

SCHEDULING.

7A. There shall be appointed a standing committee on Steering, Policy and Scheduling consisting of eleven members. The committee shall not be subject to the provisions of Rule 17A, but shall be authorized to meet from time to time at the call of the Chair for the purpose of assisting the members of the House of Representatives in identifying the major matters pending before the General Court, the relative urgency and priority for consideration of such matters, and alternative methods of responding to such matters by the General Court. Said committee shall schedule legislative matters in a manner that will provide for an even distribution and orderly consideration of reports of legislative committees on the daily Calendar.

The committee on Steering, Policy and Scheduling shall not be authorized to recommend changes or amendments to legislation or recommend that a matter ought to pass or ought not to pass, but shall only report asking to be discharged from further consideration of a bill, and recommending that it be referred or recommitted to another committee; provided, however, that it shall not recommend that a matter be referred or recommitted to the committee on Rules or the committees on Rules of the two branches, acting concurrently, or what date a matter shall be scheduled for consideration by the House and placed in the Orders of the Day. All reports by the committee on petitions filed or approved by the voters of a city or town, or by the mayor and city

council, or other legislative body of a city or the town meeting of a town with respect to a law relating to that city or town shall be read and considered by the House at a formal or informal session before being accepted, rejected or otherwise acted upon. Any such petition and any attachment to the petition shall be filed in both paper and electronic format approved by the Clerk.

All matters received from the Senate or reported from standing committees of the House and joint standing committees of the General Court shall, unless subject to provisions of any other House or joint rules, be referred to the committee on Steering, Policy and Scheduling. All matters reported by said committee on Steering, Policy and Scheduling recommending that a matter shall be scheduled for consideration by the House shall be placed in the Orders of the Day for the next sitting. Said committee may report on a legislative matter within thirty days following the day the matter was referred. If the committee fails to report a matter within thirty days following the date of its reference, the Clerk shall place the matter on the Calendar of the House as if it had been scheduled for consideration by said committee on Steering, Policy and Scheduling.

[Adopted Jan. 14, 1997; Amended Jan. 26, 1999; Jan. 24, 2001; Jan. 9, 2003; Jan. 26, 2005.]

7B. The committee on Rules shall be authorized to originate and report special orders for the scheduling and consideration of legislation on the floor of the House. Said committee shall not be subject to the notification provisions contained in Rule 17A but may hold public hearings and shall accept testimony only from the members of the House. A majority of the members appointed to the committee shall constitute a quorum. When reported, such orders may be amended by a two-thirds vote of the members present and voting, and shall be subject to

114 approval by a majority of the members of the House present and voting. Debate on the question
115 on adoption of such orders shall be limited to one hour. No orders adopted pursuant to this
116 paragraph shall limit the powers of the Speaker as provided in Rules 1 to 6, inclusive. Such
117 orders shall not be subject to reconsideration.

118 The committee on Rules shall not be subject to the provisions of Rule 17A, but may meet in
119 private to discuss or consider the appointment, discipline or dismissal of any individual the
120 committee is authorized by law or rule to appoint, discipline or dismiss.

121 [Adopted Jan. 14, 1997; Amended Jan. 24, 2001; Feb. 11, 2009; Jan. 30, 2019; Feb. 1, 2023.]

122 7C. The committee on Rules may consider and make recommendations designed to improve
123 and expedite the business and procedures of the House and its committees, and to recommend to
124 the House any amendments to the Rules deemed necessary; provided that a majority of the
125 members of the House present and voting shall be required to approve such recommendations.

126 The committee shall be privileged to report at any time.

127 [Adopted Jan. 14, 1997.]

128 7D. The Speaker shall, in consultation with the committee on Rules and the committee on
129 Steering, Policy and Scheduling, establish a committee scheduling system that minimizes to the
130 greatest extent possible scheduling conflicts for members of committees.

131 The Speaker shall determine a schedule for the House for each week relative to formal and
132 informal sessions and shall make such schedule available to the members in writing or by
133 electronic mail by 5:00 P.M. on Friday of the preceding week; provided, however, that the
134 Speaker may make, notwithstanding the provisions of Rule 7A, changes in the schedules to

135 facilitate the business of the House in an efficient and timely fashion. The Speaker shall
136 communicate notice of any such scheduling change to the members in writing or by electronic
137 mail as soon as practicable, and whenever possible, the Speaker shall provide such notice not
138 less than twenty-four hours before the event so rescheduled is set to commence.

139 [Adopted Jan. 14, 1997; January 9, 2003; Jan. 30, 2019.]

140 MONITORS.

141 8. Two monitors shall be appointed by the Speaker for each division of the House, whose
142 duty it shall be to see to the due observance of the rules, and, on request of the Speaker, to return
143 the number of votes and members in their respective divisions. [9.]

144 9. If a member transgresses any of the rules after being notified thereof by a monitor, it shall
145 be the duty of such monitor to report the case to the House.

146 It shall be the duty of a monitor to report their knowledge of the occurrence of a member
147 voting for another member, in their division of the House, to the Speaker of the House and to the
148 Minority Leader. [10.] [See Rules 16 and 16A.]

149 [Amended Jan. 9, 1991; May 5, 1993; Feb. 11, 2009; Jan. 30, 2019.]

150 9A. There shall be established a Floor Division Committee for each of the four divisions of
151 the House. The Speaker shall appoint a Floor Division chairperson for each of the four divisions.
152 Said committee shall consist of the members assigned to the respective divisions.

153 In order to create a continuous flow of debate, each chairperson shall be responsible for
154 reviewing the daily Calendar and providing advance notice to committee members in the
155 respective divisions of all matters scheduled for consideration in the Orders of the Day. Said

156 committee chairpersons shall provide information to members of their committees on pending
157 legislation and other matters of business before the House, and shall serve as the primary liaison
158 between their respective committees and the Speaker of the House. The committee chairpersons
159 shall advise the Speaker on operational matters, including session coordination, debate, and
160 remote voting, as necessary, and other critical business before the House. Said chairpersons shall
161 facilitate discussions among committee members and ensure that committee members are fully
162 equipped to engage in informed and productive debate.

163 [Adopted Jan. 14, 1997.]

164 CLERK.

165 10. The Clerk shall keep the Journal of the House. The Clerk shall enter therein a record of
166 each day's proceedings and, whenever practicable, submit it to the Speaker and the Minority
167 Leader before the hour fixed for the next sitting, and shall cause the same to be available daily in
168 a format to be determined by the Clerk; and provided further that a copy of said Journal shall
169 also be made available to each member of the House. Any objection to the Journal shall be made
170 before the House proceeds to the consideration of the Orders of the Day. [11.] (6.)

171 [Amended Jan. 12, 1981; Jan 11, 1985; Jan. 17, 1995; Jan. 9, 2003.]

172 10A. The Clerk shall be the official parliamentarian of the House of Representatives.

173 [Adopted Jan. 9, 1991.]

174 10B. The Clerk shall be the official keeper of records of the House of Representatives for
175 legislative records that remain in the office of said Clerk at the end of each biennial session, and

176 until such time as said records are transferred to the State Archives or destroyed in accordance
177 with law.

178 [Adopted Jan. 29, 2015.]

179 11. Every question of order with the decision thereof shall be entered at large in the Journal,
180 and shall be noted in an appendix, which shall also contain the rules of the House and of the two
181 branches. [12.] (6.)

182 12. The Clerk shall prepare and make available on each day of formal session a Calendar of
183 matters in order for consideration and such other memoranda as the House or the Speaker may
184 direct. The Clerk shall prepare a Calendar on which shall appear any question on passage of a
185 bill or resolve notwithstanding the objections of Their Excellency the Governor which may be
186 considered forthwith at the direction of the House or Speaker.

187 When, in the determination of the Clerk, a volume of matters exists for the next legislative
188 day, the Clerk shall be authorized to prepare and cause to be made available an advance calendar
189 of the matters in order of consideration for the next legislative day and such other memoranda as
190 the House or Speaker may direct. The Clerk may indicate on the advance calendar that the
191 matters contained therein are subject to change.

192 The Clerk shall be authorized to dispense with preparing and making available a Calendar for
193 designated formal sessions of the House only after two-thirds of the members present and voting
194 consent thereto on a recorded yea and nay vote. Debate on this question shall be limited to fifteen
195 minutes, no member shall speak more than three minutes, and such question shall not be subject
196 to reconsideration.

197 The Clerk shall dispense with preparing and making available a Calendar for designated
198 Informal Sessions of the House.

199 As soon as practicable whenever the Clerk prepares a Calendar or advance Calendar under
200 this rule, they shall also cause a true copy thereof to be posted on the website of the General
201 Court that is generally available to all members and their staff, and reasonably promptly
202 thereafter the Clerk shall cause the members and their staff to be notified of the same by way of
203 electronic mail. [13.] (7.)

204 [Amended Jan. 12, 1983; Jan. 11, 1985; Jan. 12, 1987; May 5, 1993; Jan. 17, 1995; Jan. 24,
205 2001; Jan. 9, 2003; Jan. 26, 2005, Jan. 23, 2007; Jan. 30, 2019; Feb. 1, 2023.]

206 13. Any objection to the Calendar shall be made and disposed of before the House proceeds to
207 the consideration of the Orders of the Day. [14.]

208 13A. The Clerk shall make available to all members electronically and, to the public via the
209 website of the General Court, the text of all dockets and bills introduced and admitted for
210 consideration in the House.

211 [Adopted, Feb. 11, 2009; Jan. 30, 2019; July 7, 2021; Feb. 1, 2023.]

212 COUNSEL.

213 13B. (a) The House shall employ a full-time Counsel pursuant to section 51 of chapter 3 of
214 the General Laws. The committee on Rules shall appoint a qualified person to act as Counsel at
215 such compensation as the committee on Rules shall approve.

216 Counsel shall serve a term of two years from the date of appointment, unless the Counsel
217 sooner resigns, retires or is removed; provided, however, that the Counsel may only be removed:

218 (i) for misfeasance, malfeasance or nonfeasance, as determined by the Director of Human
219 Resources appointed pursuant to Rule 90 and approved by a majority vote of the committee on
220 Rules; or (ii) by a majority roll call vote of the House.

221 Counsel may employ such legal and other assistants as may be necessary in the discharge of
222 Counsel's duties, subject to the approval of the committee on Rules, and may expend with like
223 approval such sums as may be necessary for the discharge of their duties.

224 (b) Counsel shall be the chief legal officer of the House and shall perform all duties generally
225 required of a counsel to an organization and specifically those required pursuant to any general
226 or special law, rule, regulation, or order of the House. Counsel shall provide legal and legislative
227 drafting services to all members regardless of party or seniority.

228 [Added Jan. 30, 2019.]

229 HOUSE BUSINESS MANAGER.

230 13C. (a) The House shall employ a full-time House Business Manager. The committee on
231 Operations, Facilities and Security shall appoint a qualified person to act as House Business
232 Manager at such compensation as the committee on Operations, Facilities and Security shall
233 approve.

234 Subject to the approval of the committee on Operations, Facilities and Security, the House
235 Business Manager may employ such assistants as may be necessary in the discharge of their
236 duties and may expend with like approval such sums as may be necessary for the discharge of
237 their duties.

238 (b) The House Business Manager shall be the chief finance manager of the House and shall
239 report to the committee on Operations, Facilities and Security, which shall provide oversight of
240 the House Business Manager generally and approval of any decisions made by the House
241 Business Manager having a substantial impact on the House of Representatives, as determined
242 by the committee. The House Business Manager shall perform all duties generally required of a
243 finance manager to an organization and specifically those required pursuant to House Rules or as
244 directed by the committee on Operations, Facilities and Security. Such duties shall include,
245 without limitation, overseeing the provision of outside, independent audits of House financial
246 accounts pursuant to House Rule 85A; the execution and management of all procurements
247 pursuant to House Rule 87; the maintenance of and adherence to internal control policies and
248 procedures related to the House's finances and administration; and the maintenance of House
249 invoices, receipts, vouchers, contracts, and related documentation.

250 MEMBERS.

251 14. No member shall stand up, to the inconvenience of others, while a member is speaking; or
252 be involved in disturbing conversation while another member is speaking in debate; or pass
253 unnecessarily between the Speaker of the House and the member speaking; or stand in the
254 passages, or in the area in front of the Chair; or stand at the Clerk's desk while a roll call is in
255 progress. [16.]

256 [Amended Jan. 12, 1987; Jan. 9, 1989; Jan. 26, 1999.]

257 14A. [Adopted Feb. 11, 2009; Omitted Jan. 29, 2015.]

258 15. When it appears to the Chair that the presence of a quorum is endangered, the Chair shall
259 order the doors closed. If a quorum is doubted the Chair shall order the doors closed and

260 thereafter no member shall enter or leave the House until an initial determination has been made
261 as to the presence of a quorum or lack thereof; and thereafter, provided that no quorum is
262 present, no member shall leave the House unless by permission of the Chair, but members shall
263 be admitted, at any time.

264 Upon the doubting of a quorum and after ascertaining that a quorum is not present, the
265 Speaker may order a recorded attendance roll call to be taken by use of the electronic roll call
266 system.

267 Said roll call, if ordered, shall be taken at a time determined by the Speaker.

268 Members answering a quorum call shall vote “YES” on the roll call system. [17.] (11.)

269 [Amended Jan. 12, 1981; Feb. 22, 1982; Jan. 12, 1983; Jan. 12, 1987; Jan. 9, 1991.]

270 ETHICS.

271 16. There shall be appointed a committee on Ethics as authorized by Rule 17. The committee
272 shall consist of 11 members, 7 of whom shall be appointed by the Speaker, 4 of whom shall be
273 appointed by the Minority Leader.

274 A member appointed to the committee shall not be considered to be a member of the
275 committee subsequent to the declaration of candidacy for any other state or federal elective
276 office.

277 The committee shall investigate and evaluate, (i) at the direction of the Speaker, (ii) by a
278 sworn written complaint filed and delivered by a member, officer or employee to the chair, (iii)
279 or by a majority vote of the members appointed to the Ethics committee, any matters relative to
280 alleged violations of Rule 16A by a member, officer or employee.

281 Upon the receipt of a sworn written complaint, at the direction of the Speaker or by a majority
282 vote of the members appointed to the Ethics committee, the committee shall notify any person
283 named of the nature of the alleged violation and a list of prospective witnesses, and also shall
284 notify said person of the final disposition and the recommendations, if any, of the committee.

285 Any member, officer, or employee of the House named relative to an alleged violation shall
286 be afforded the opportunity to appear before the committee on Ethics with counsel.

287 All proceedings including the filing of the initial complaint shall be considered confidential
288 information.

289 If the alleged violation received in the manner described above is deemed to have merit by a
290 majority vote of the members appointed to the committee, the committee shall file a report with
291 the Clerk of the House. Said report shall be a public document. The committee shall not disclose
292 any allegation deemed to be frivolous or without merit.

293 If a majority appointed finds that any member, officer, or employee of the House has violated
294 any provision of Rule 16A, a majority appointed may, in the case of a member, recommend a
295 reprimand, censure, removal from a committee or position of authority, including leadership,
296 chair or vice chair, or expulsion; and in the case of an officer or employee, a majority appointed
297 may recommend a reprimand, suspension, or removal from employment.

298 Should such an alleged violation be filed with the committee regarding a member or members
299 of the House Ethics committee, said member or members shall not participate in the committee
300 deliberations on said alleged violation.

301 Any member, officer, or employee of the House may request in writing from the House
302 committee on Ethics or from the Counsel to the House appointed pursuant to Rule 13B a
303 confidential written advisory opinion on the requirements of chapters 268A and 268B of the
304 General Laws as well as an opinion on any other general or special law, rule or regulation
305 applicable to their official position or concerning any contemplated personal action which may
306 conflict with their official position. The committee on Ethics or the Counsel to the House shall
307 issue confidential written advisory opinions and clarification in response to said written request.

308 No member, officer or employee of the House shall be penalized in any manner for having
309 acted within the guidelines of a written advisory opinion from the House committee on Ethics or
310 from the Counsel to the House appointed pursuant to Rule 13B, provided that all pertinent facts
311 are stated in the request for an advisory opinion.

312 A written advisory opinion from the House committee on Ethics or from the Counsel to the
313 House appointed pursuant to Rule 13B shall be a defense in any proceeding arising from said
314 opinion or advice unless material facts were omitted or misstated by the person in the request of
315 the opinion.

316 The chair of the Ethics committee may convene the committee at any time.

317 The chair shall also convene the committee at the written request of at least 5 members of the
318 committee.

319 The committee may, upon the written and signed report of two-thirds of the members of the
320 committee, file a special report containing legislation without said legislation being founded
321 upon petition which shall be referred under the provisions of Rule 24 and consistent with the
322 provisions of Joint Rule 13, to the appropriate joint standing committee. Any special report

323 containing legislation filed pursuant to this paragraph shall be germane to subject matters
324 regularly considered by the committee. The committee shall not include in any such special
325 report a bill that would have a fiscal impact as described in Rule 33.

326 Upon convening of the first annual session of the General Court and after the adoption of
327 rules, all members, officers and employees of the House shall be provided with a current copy of
328 the Code of Ethics contained in Rule 16A. [19.] (12A.)

329 [Amended Jan. 12, 1987; May 5, 1993; Jan. 17, 1995; Mar. 6, 1995; Jan. 14, 1997; Jan. 20,
330 2011; Feb. 11, 2009; Jan. 29, 2015; Jan. 30, 2019; July 7, 2021.]

331 CODE OF ETHICS.

332 16A. (1.) While members, officers and employees should not be denied those opportunities
333 available to all other citizens to acquire and retain private, economic and other interests;
334 members, officers, and employees should exercise prudence in any and all such endeavors and
335 make every reasonable effort to avoid transactions, activities, or obligations, which are in
336 substantial conflict with or will substantially impair their independence of judgment.

337 (2.) No member, officer or employee shall solicit or accept any compensation or political
338 contribution other than that provided for by law for the performance of official legislative duties.

339 (3.) No member, officer or employee shall serve as a legislative agent as defined in section 39
340 of chapter 3 of the General Laws regarding any legislation before the General Court.

341 (4.) No member, officer or employee shall receive any compensation or permit any
342 compensation to accrue to their beneficial interest by virtue of influence improperly exerted from
343 their official position in the House.

(5.) No member, officer or employee shall accept employment or engage in any business or professional activity, which will require the disclosure of confidential information gained in the course of, and by reason of, their official position.

(6.) No member, officer or employee shall willfully and knowingly disclose or use confidential information gained in the course of their official position to further their own economic interest or that of any other person.

(7.) Except as provided in Rule 49, no member shall cast a vote for any other member, nor shall any officer or employee vote for any member, except that the Clerk or an assistant Clerk may record a vote for a member who votes late under the provisions of Rule 52, or is prohibited from voting from his desk due to a malfunction of the electronic roll call voting system; provided the Clerk's action shall not be construed as voting for said member.

(8.) No member shall use profane, insulting, or abusive language in the course of public debate in the House Chamber or in testimony before any committee of the General Court.

(9.) No member, officer or employee shall employ anyone from public funds who does not perform tasks which contribute substantially to the work of the House and which are commensurate with the compensation received. Unless their personnel record indicates otherwise, no officer or full-time employee of the House shall engage in any outside business activity during regular business hours, whether the House is in session or not, and all employees of the House are assumed to be full-time.

(10.) No member, officer or employee shall accept or solicit compensation for non-legislative services which is in excess of the usual and customary value of such services.

365 (11.) No member, officer or employee shall accept or solicit an honorarium for a speech,
366 writing for publication, or other activity from any person, organization or enterprise having a
367 direct interest in legislation or matters before any agency, authority, board or commission of the
368 Commonwealth which is in excess of the usual and customary value of such services.

369 (12.) No member, officer or employee shall knowingly accept any gifts from any legislative
370 or executive agent as prohibited by law. No member, officer or employee shall knowingly accept
371 any gift from any person or entity having a direct interest in legislation before the General Court
372 as prohibited by law. (For the purposes of this paragraph, the terms “gift” and “person” shall be
373 the same as their definitions in section 1 of chapter 268B of the General Laws).

374 (13.) No member shall convert campaign funds to personal use in excess of reimbursements
375 for legitimate and verifiable campaign expenditures. Members shall consider all proceeds from
376 testimonial dinners and other fundraising activities as campaign funds.

377 (14.) No member shall serve on any committee or vote on any question in which their private
378 right is immediately concerned, distinct from the public interest. [19.]

379 (15.) No member, officer or employee shall violate the confidentiality of any proceeding
380 before the Ethics committee. [19A.]

381 (16.) Members, officers and employees may utilize public resources to support charitable and
382 community service activities consistent with the Conflict of Interest Law, G.L. c. 268A, pursuant
383 to policies established by committee on Human Resources and Employee Engagement pursuant
384 to Rule 90(h)(2).

385 [Amended Jan. 12, 1981; May 5, 1993; Jan. 24, 2001; Feb. 11, 2009; Jan. 29, 2015; Jan. 30,
386 2019; Jul. 7, 2021; Feb. 1, 2023.]

387 16B. The committee on Human Resources and Employee Engagement shall develop and
388 conduct an ethics law training program for every member, officer and employee of the House;
389 provided further, that said training program shall include, without limitation, a review of the
390 requirements and prohibitions of chapter 268A and chapter 268B of the General Laws, and the
391 regulations of the State Ethics Commission, as they apply to legislators and legislative staff; and
392 provided further, that said training program shall be offered virtually or in-person and shall be
393 mandatory for all members, officers and employees.

394 [Adopted Jan. 9, 2003, Amended Feb. 11, 2009; Jan 20, 2011; Jul. 7, 2021.]

395 16C. Bills involving lobbyists' reporting laws, and laws pertaining to the ethical conduct of
396 public officials shall, after their first reading, be referred to the committee on Ethics, for report
397 on their relation to the ethics laws of the Commonwealth. No new provisions shall be added to
398 such measures by the committee, unless directly pertaining to ethics. [Adopted Feb. 11, 2009.]

399 COMMITTEES.

400 17. At the beginning of the first year of the two-year General Court, standing committees
401 shall be appointed as follows:

402 A committee on Rules;

403 (to consist of 15 members).

404 A committee on Ways and Means;

405 (to consist of 35 members).

406 A committee on Bills in the Third Reading;

407 (to consist of 3 members).

408 A committee of each Floor Division;

409 (to consist of the members of each division).

410 A committee on Ethics;

411 (to consist of 11 members).

412 A committee on Human Resources and Employee Engagement;

413 (to consist of 13 members).

414 A committee on Post Audit and Oversight;

415 (to consist of 11 members).

416 A committee on Steering, Policy and Scheduling;

417 (to consist of 11 members).

418 A committee on Climate Action and Sustainability;

419 (to consist of 11 members).

420 A committee on Federal Funding, Policy and Accountability;

421 (to consist of 11 members).

422 A committee on Operations, Facilities and Security;

423 (to consist of 11 members).

424 A committee on Intergovernmental Affairs;

425 (to consist of 11 members).

426 Committee meetings, insofar as practicable, shall not be scheduled in conflict with formal
427 sessions of the House of Representatives. [20.] (12, 12A, 12B.)

428 [Amended March 6, 1979; Sept. 16, 1981; Jan. 11, 1985; Jan. 12, 1987; May 5, 1993; Oct. 6,
429 1993; May 23, 1996; Jan. 14, 1997; Jul. 17, 2003; Jan. 26, 2005, Feb. 11, 2009; Jan. 29, 2015;
430 Jul. 7, 2021.]

431 17A. (a) For the purposes of this rule, the following terms shall, unless the context clearly
432 requires otherwise, have the following meanings:

433 “Deliberation”, a verbal exchange between a quorum of members of a committee attempting
434 to arrive at a decision on any public business within its jurisdiction.

435 “Emergency”, a sudden generally unexpected occurrence or set of circumstances demanding
436 immediate action.

437 “Executive conference”, any meeting or part of a meeting of a committee which is closed to
438 certain persons for deliberation on certain matters.

439 “Executive session”, any meeting or part of a meeting of a committee wherein the committee
440 is voting on legislation and where public participation is limited to observance.

441 “Meeting”, any corporal convening and deliberation of a committee for which a quorum is
442 required in order to make a decision at which any public policy matter over which the committee
443 has supervision, control, jurisdiction or advisory power is discussed or considered; provided,
444 however, that “meeting” shall not include an on-site visitation or inspection of any project or
445 program.

446 “Quorum”, a simple majority of a committee unless otherwise defined by constitution, rule or
447 law applicable to such committee; provided further, that a quorum shall be presumed to be
448 present unless otherwise doubted.

449 (b) All meetings, except executive conferences, of House standing and special committees,
450 shall be open to the public and any person shall be permitted to attend any meeting except as
451 otherwise provided pursuant to this rule or Rule 7A. All meetings of House standing and special
452 committees open to the public shall be conducted in-person with the option of remote
453 participation available to the public; provided, however, that the members of such committees
454 shall be physically present at the hearing location where in-person public testimony is offered.
455 All House standing and special committees, in the conduct of their hearings, shall utilize, to the
456 extent practicable, online platforms or systems that allow for synchronous, audio-visual
457 communication between the members of the committee and individuals offering testimony
458 remotely. All hearings of House standing and special committees shall be publicly livestreamed
459 on the official website of the General Court which shall display and transmit, in real-time, the
460 audio-visual attributes of public testimony offered remotely; provided further, that said
461 livestream shall be archived on the official website of the General Court for the duration of the
462 legislative session. The chair of any House standing or special committee conducting a hearing
463 shall use best efforts to prioritize the testimony of those physically present at the hearing location

464 and may, in their discretion, allow individuals participating in-person a greater amount of time to
465 testify than those participating remotely. All notices of hearings shall include instructions on how
466 to offer testimony both in-person and remotely. The chair of all House standing and special
467 committees shall record the attendance of members during committee hearings and shall cause
468 the attendance to be published on the official website of the General Court alongside the
469 livestream of the hearing archived on said website.

470 No quorum of a committee shall meet in private for the purpose of deliberation except as
471 provided pursuant to this rule.

472 No executive session shall be held until: (i) the committee has first convened in an open
473 session for which notice has been given; (ii) the presiding officer has stated the authorized
474 purpose of the executive session; (iii) a majority of the members of the committee present have
475 voted to go into executive session and the vote of each member has been recorded on a roll call
476 vote and entered into the minutes: and (iv) the presiding officer has stated before the executive
477 session if the committee will reconvene after the executive session.

478 (c) Executive conferences shall be held only for the following purposes: (i) to discuss the
479 reputation, character, physical condition or mental health rather than the professional
480 competence of a member, officer or employee; (ii) to consider the discipline or dismissal of, or to
481 hear complaints or charges brought against a member, officer or employee; (iii) to discuss
482 strategy with respect to litigation if an executive session or other open meeting may have a
483 detrimental effect on the legal position of the committee; or (iv) to consider the purchase,
484 exchange, lease or value of real property, if such discussions may have a detrimental effect on
485 the negotiating position of the Commonwealth or a person, firm or corporation.

486 A member, officer or employee subject to an executive conference pursuant to clause (i) or
487 clause (ii) shall be notified in writing no less than 48 hours prior to the proposed executive
488 conference; provided, however, that upon agreement of the parties involved, the notification
489 requirements of clause (i) and clause (ii) may be waived. Upon request of the member, officer or
490 employee subject to an executive conference pursuant to clause (i) or clause (ii) the executive
491 conference shall be open to the public.

492 A member, officer or employee subject to an executive conference pursuant to clause (i) or
493 clause (ii) shall have the right to: (a) be present at such executive conference during discussions
494 or considerations which involve that member, officer or employee; (b) have counsel or a
495 representative of their own choosing present and attending for the purpose of advising said
496 member, officer or employee; provided, however, that said counsel or representative shall not
497 actively participate in the executive conference; and (c) to speak on their own behalf to the
498 committee assembled in executive conference.

499 (d) This rule shall not apply to any chance meeting or social meeting at which matters relating
500 to official business are discussed so long as no final agreement is reached. No chance meeting or
501 social meeting shall be used in circumvention of the spirit or requirements of this section to
502 discuss or act upon a matter over which the committee has supervision, control, jurisdiction, or
503 advisory power.

504 (e) Except pursuant to an emergency, a notice and agenda of every meeting of a committee
505 subject to this rule shall be filed with the Clerk of the House, publicly posted by the Clerk on the
506 bulletin board outside the Clerk's Office and in such other places as are designated in advance
507 for such purpose by said Clerk, made available to all members electronically and made available

to the public via the website of the General Court at least 72 hours prior to the time of such meeting and a list of the bills, petitions, and resolutions to be considered for a vote or other action by the committee. The notice shall include the date, time and place of such meeting. Such filing and posting shall be the responsibility of the committee scheduling such meeting. If public testimony is being solicited, agendas shall include an electronic mail address and physical mail address for the submission of testimony and instructions on how the public may participate remotely, and the committee shall make reasonable efforts to ensure diversity among those from whom testimony is solicited. The notice and posting requirements shall not apply to executive conferences held pursuant to clause (i) or clause (ii) of subsection (c) of this rule unless the member, officer or employee subject to the executive conference requests that the executive conference be open to the public.

(f) A committee shall maintain accurate records of its meetings and hearings setting forth the date, time and place thereof, and recording any action taken at each meeting, hearing, executive conference or executive session. All votes requested to be taken in executive sessions shall be recorded roll call votes and shall become a part of the record of said executive sessions. The record of each meeting shall be available to the public on the official website of the General Court; provided, however, that the records of any executive conference shall remain confidential as long as publication may defeat the lawful purposes of the executive conference.

(g) Upon prior notification and approval of the chair, a meeting of a committee may be recorded by a person in attendance by means of a recorder or any other means of audio/visual reproduction; provided, however, that said recording shall not interfere with the conduct of the meeting. Executive conferences conducted pursuant to clause (i) or clause (ii) of subsection (c) of this rule shall not be recorded unless upon the request of the member, officer or employee who

is subject to said executive conference, and then only at such member's, officer's or employee's expense. Executive conferences conducted pursuant to clause (iii) or (iv) of subsection (c) of this rule may be recorded at the discretion of the chair.

(h) Copies of all redrafted bills that are to be voted on at an executive session by the House Ways and Means Committee shall be available to all members of the committee electronically in the form they will be considered no less than twenty-four hours prior to their consideration; provided, however, that said committee may vote on a bill that has not been available for said period of time by vote of a majority of the committee members present.

[Adopted Nov. 17, 1983; Amended Jan. 12, 1987; Jan. 9, 1991; May 5, 1993; Jan. 17, 1995; Jan. 14, 1997; Jan. 9, 2003, Jan. 23, 2007, Feb. 11, 2009; Jan. 30, 2019; Jul. 7, 2021; Feb. 1, 2023.]

17B. The vote on any legislation in committee shall be a recorded vote of the full committee. Such votes shall be recorded on appropriate forms that show all votes for and against the particular committee action; provided, that votes may also be recorded in LAWS. The record of all such roll calls shall be posted on the official website of the General Court within 48 hours of the vote.

No report of a House committee on any legislation shall be final until those members of the committee present and voting with the majority have been given the opportunity to sign such appropriate forms before the report is made to the House. No signature shall be valid unless the forms to which the signatures are affixed include the substantially complete text of the legislation being reported.

552 [Adopted Nov. 17, 1983; Amended Jan. 12, 1987, Amended Jan. 29, 2015; Jul. 7, 2021; Feb.
553 1, 2023.]

554 17C. There shall be a committee on Human Resources and Employee Engagement on the part
555 of the House consisting of thirteen members.

556 Said committee shall discharge its duties pursuant to the Rules, including Rule 16B and Rules
557 88 through 100, and shall also be responsible for the allocation of office space as equitably as
558 possible among the various members and joint and standing committees. The committee shall
559 allocate space among the various committees on the part of the House taking into account the
560 workload, duties and responsibilities and size of staff of each.

561 The Speaker may make temporary office assignments in accordance with the foregoing
562 principles.

563 The committee on Human Resources and Employee Engagement may from time to time make
564 changes in the assignment of office space for committees and the various staffs in accordance
565 with the established standards.

566 Said committee shall establish the staffing levels and positions for each joint and standing
567 committee of the House together with a classification plan for all employees of the House of
568 Representatives.

569 The House staff members of each committee shall be appointed solely on the basis of fitness
570 to perform the duties of their respective positions, consistent with section 4 of chapter 151B of
571 the General Laws. The committee staff shall not:

(1) engage in any work other than legislative business during business hours unless pursuant to the pro-bono service policy or charitable and community service activity policy established by the committee on Human Resources and Employee Engagement pursuant to Rule 90(h)(2); and

(2) be assigned any duties other than those pertaining to legislative business.

The committee shall meet on request of the chair or any 3 members of the committee. Any such meeting requested shall be convened on or within the fifth business day following such request. All such requests shall be in writing and forwarded to the chair and each member of the committee.

Funds shall be allocated from the budget to carry out the determination of the committee.

[Adopted Jan. 11, 1985; Amended Jan. 16, 1985; Jan. 12, 1987; Jan. 9, 1991; Feb. 11, 2009; Jan. 29, 2015; Jan. 30, 2019; July 7, 2021; Feb. 1, 2023.]

17D. [Omitted Jan. 26, 2005.]

17E. [Omitted Jan. 26, 2005.]

17F. [Omitted Jan. 26, 2005.]

17G. [Omitted Jul. 7, 2021.]

18. The Speaker shall appoint, and may recommend the removal of, the Speaker pro Tempore, the Majority Floor Leader, Assistant Majority Floor Leader and two Second Assistant Majority Floor Leaders. The Minority Leader shall appoint, and may recommend the removal of, the Assistant Minority Floor Leader, Second Assistant Minority Floor Leader, and two Third Assistant Minority Floor Leaders, Ranking minority member of Ways and Means, two Assistant

592 Ranking minority members of the Ways and Means committee, Ranking minority member of the
593 committee on Rules, Ranking minority member of the committee on Financial Services, Ranking
594 minority member of the committee on Health Care Financing, Ranking minority member of the
595 committee on the Judiciary, Ranking minority member of the committee on Bonding, Capital
596 Expenditures, and State Assets, Ranking minority member of the committee on Public Safety
597 and Homeland Security, Ranking minority member of the committee on Transportation and
598 Ranking minority member of the committee on Economic Development and Emerging
599 Technologies. The Minority Leader shall be that member of the minority party who is selected
600 for that position by the members of their party.

601 Each of the foregoing appointments or removals shall be ratified by a majority vote of the
602 respective party caucus. In the event that an appointment is rejected by such caucus another
603 appointment shall be made by the person designated to make the initial appointment, which shall
604 also be subject to ratification in the same manner.

605 The Speaker shall appoint, and may recommend the removal of, the chair of each standing
606 committee. The Speaker shall appoint, and may recommend the removal of, the vice chair and
607 assistant vice chair of the Ways and Means committee, the vice chair of the Post Audit and
608 Oversight committee, the vice chair of the committee on Rules, the vice chair of the committee
609 on Revenue, the vice chair of the committee on Financial Services, the vice chair of the
610 committee on Health Care Financing, the vice chair of the committee on Bonding, Capital
611 Expenditures, and State Assets, the vice chair of the committee on State Administration and
612 Regulatory Oversight, and the vice chair of the committee on Economic Development and
613 Emerging Technologies.

614 The majority party shall then vote to accept or reject each such appointment or
615 recommendation for removal by a majority vote.

616 In the event that any such appointment is rejected by the caucus, the procedure of this rule
617 shall be repeated until an appointment for the said position has been approved by the caucus. A
618 vacancy in any position to which the provisions of this section apply shall be filled in the same
619 manner as provided in this section for original appointment.

620 No member shall receive more than one stipend pursuant to section 9B of chapter 3 of the
621 General Laws.

622 The Speaker and the Minority Leader may, without a majority vote of their respective parties,
623 remove a member appointed to a leadership position from said position pursuant to this rule if
624 the member has been criminally indicted by a court of competent jurisdiction.

625 [Amended Jan. 16, 1979; Nov. 17, 1983; Jan. 11, 1985; Jan. 9, 1991; Jan. 14, 1997; Jan. 23,
626 2007; Feb. 11, 2009; Jan 23, 2013; Jan. 29, 2015; Feb. 19, 2015; Jan. 30, 2019; Feb. 1, 2023.]

627 18A. There shall be 1 member of the minority party on all committees of conference and 1 on
628 the committee on Bills in the Third Reading. On all other standing and joint committees, the
629 percent of minority party membership shall be at least equal to the percent of minority party
630 membership in the House of Representatives as of the first day of the session; provided, further,
631 that where such percentage results in a fraction of a number, the fraction shall be rounded off to
632 the nearest whole; provided, however, that the minority party shall under no circumstances have
633 fewer than 4 members on the committee on Ethics, 4 on the committee on Human Resources and
634 Employee Engagement , 3 on the committee on Rules and 7 on the committee on Ways and

635 Means. In no case shall minority party representation be fewer than 2 members on all other
636 standing and joint committees.

637 The Speaker and the Minority Leader shall appoint the members of their respective party
638 caucuses to be assigned to each standing committee. The Speaker shall appoint the vice chair of
639 each standing committee. The appointments, except those to which Rule 18 applies, shall be
640 voted upon together and shall be subject to ratification by majority vote of the appropriate party
641 caucus.

642 No member shall be removed from a standing committee except upon the recommendation of
643 the Speaker or Minority Leader, as the case may be, subject to the ratification by their respective
644 caucuses; provided, however, that the Speaker and the Minority Leader may, without a majority
645 vote of their respective parties, remove a member appointed to a standing committee pursuant to
646 this rule if the member has been criminally indicted by a court of competent jurisdiction; and
647 provided further, that if any vacancy occurs in a position to which Rule 18 does not apply,
648 subsequent to the initial ratification, the Speaker or Minority Leader shall fill such vacancy.

649 The Speaker shall announce committee appointments of majority party members, and the
650 member first named shall be chair, and the second named member shall be vice-chair. The
651 Minority Leader shall announce committee appointments of minority party members. (13.)

652 [Adopted Jan. 11, 1985; Amended Jan. 12, 1987; Jan. 9, 1991; Jan. 14, 1997; Feb. 11, 2009;
653 Jan. 30, 2019.]

654 18B. All votes on ratification by the caucus required by these rules shall be by written ballot
655 and shall require a majority of those present and voting; provided, however, that if a motion to

656 ratify the appointments by acclamation is made and seconded, no written ballot shall be required.

657 [Adopted Jan. 11, 1985.]

658 18C. [Adopted, Jan. 11, 1985, Omitted Jan. 24, 2001.]

659 19. A majority and minority party caucus may be called by the Speaker or Minority Leader,
660 respectively, or upon petition of 25 percent of the members of the respective party caucus. A
661 caucus may entertain resolutions, motions, or other means of ascertaining the sense of the
662 respective party members on any subject. (13B.)

663 [Adopted Nov. 17, 1983; Amended Jan. 11, 1985; Jan. 29, 2015.]

664 19A. The majority party and minority party shall establish caucus rules that shall dictate the
665 procedures of each caucus.

666 19B. Any member caucus or group of members organized around a common legislative
667 agenda that utilizes House resources, including staff time, shall register with the House
668 Committee on Rules as a Legislative Member Organization, unless it is a party caucus. The chair
669 of the House Committee on Rules shall notify the Clerk of the House of any Legislative Member
670 Organization registering with the Committee and shall maintain a list of all Legislative Member
671 Organizations.

672 Registration shall include the name of the Legislative Member Organization, its statement of
673 purpose, identification of its members and officers, and a certification signed by its chair that any
674 state resources used for the purposes of the Legislative Member Organization shall be not be
675 used for any partisan political end.

676 A Legislative Member Organization may not include a non-legislator. Senators may belong to
677 the Legislative Member Organization, but at least one House member shall be an officer of the
678 Legislative Member Organization in order for the organization to use House resources. A
679 Legislative Member Organization may, without limitation, sponsor informational or educational
680 events, may invite outside speakers and groups to make presentations to the members of the
681 Legislative Member Organization and others, and may distribute any report, analysis, or other
682 research material prepared by others, provided, that the identity of the person or organization
683 authoring the work is fully disclosed.

684 A member's official stationery may list their membership in a Legislative Member
685 Organization.

686 [Adopted Nov. 17, 1983; Amended Jan. 14, 1997; Jul. 7, 2021; Feb. 1, 2023.]

687 20. The committee on Ways and Means shall report in appropriation bills the total amount
688 appropriated. The General Appropriation Bill shall be available to the members at least 7
689 calendar days prior to consideration thereof by the House. [25.] (27A.)

690 [Amended Jan. 11, 1985; Mar. 24, 1986; Jan. 14, 1997; Jan. 26, 2005; Jan. 29, 2015.]

691 20A. (a) Notwithstanding the provisions of Rule 33A, amendments to the General
692 Appropriation Bill shall be properly filed with the Clerk in an electronic format to be determined
693 by the Clerk as directed by the Speaker; provided, that the Clerk shall notify by electronic
694 communication the primary sponsor of each amendment of the receipt of such amendment and
695 the number assigned by said Clerk to the amendment; provided further, that the Clerk shall print
696 each amendment so filed electronically and such printed copy shall be considered to be the
697 official amendment for that bill. Amendments to said General Appropriation Bill shall be filed

698 with the Clerk by 5 o'clock P.M. on the third business day subsequent to the bill being made
699 available in a format to be determined by the Clerk as directed by the Speaker pursuant to Rule
700 20B and release of said bill by said Clerk; provided, that if the release of said bill by said Clerk
701 occurs before the hour of 2 o'clock P.M., then the same day in which said bill was released shall
702 be considered the first business day. Otherwise, the day following the release shall be considered
703 the first business day.

704 (b)(1) The Clerk, with the assistance of the committee on Ways and Means, shall categorize
705 the subject-matter of the amendments and arrange such amendments for consideration
706 sequentially by subject as appearing in the published version of the General Appropriation Bill,
707 or the Clerk, with the assistance of the committee on Ways and Means, shall categorize the
708 subject-matter of the amendments and arrange such subject matters for consideration as
709 determined by the committee on Ways and Means. Debate on the General Appropriation Bill
710 shall not commence until a date and time to be determined by the House which is subsequent to
711 the designated time established for filing of amendments pursuant to subsection (a) of this rule.

712 (2) Before the main question on the General Appropriation Bill is placed before the House, an
713 amendment may be withdrawn at the request of the primary sponsor of the amendment or
714 postponed by the committee on Ways and Means; provided, that further consideration of any
715 amendment so postponed shall take place immediately subsequent to consideration of the
716 amendments within the particular subject-matter to which the postponed amendment was
717 assigned according to the provisions of this subparagraph; provided, that if more than one
718 amendment is so postponed, subsequent consideration of said amendments shall be in the order
719 determined by the committee on Ways and Means; provided further, an amendment so postponed
720 shall not be subsequently considered outside of its assigned subject-matter; and provided further,

721 that perfecting or substitute amendments, including, but not limited to an amendment
722 consolidating more than one amendment, may be submitted by the committee on Ways and
723 Means during consideration of the subject category to which the amendment or amendments
724 were assigned. Any amendment may be removed from a consolidated amendment by the
725 primary sponsor of the amendment. Any such amendment so removed from a consolidated
726 amendment shall be offered as an amendment to the General Appropriation Bill, to be acted upon
727 in the first degree before action is taken on the consolidated amendment, except that any
728 amendment so removed from the consolidated amendment may be moved by the committee on
729 Ways and Means from one subject category to another subject category not yet disposed of in the
730 General Appropriation Bill.

731 (3) A consolidated amendment to the General Appropriation Bill, offered by the committee
732 on Ways and Means, shall contain a fiscal note indicating its total expenditures.

733 (4) Notwithstanding Rule 74, a consolidated amendment offered by the committee on Ways
734 and Means, may not be divided.

735 (c) Except for consolidated amendments or perfecting amendments offered by the committee
736 on Ways and Means, no proposition on a subject different from the amendment under
737 consideration shall be admitted under color of a further amendment to the General Appropriation
738 Bill. A consolidated amendment to the General Appropriation Bill, offered by the committee on
739 Ways and Means, shall be a motion offering an amendment in the second degree.

740 (d) Any amendment to the General Appropriation Bill not complying with this rule shall be
741 considered withdrawn; provided that, any such amendments shall be published as part of the
742 amendment list published by the committee on Ways and Means.

743 [Adopted Jan. 24, 2001; Amended Jan. 9, 2003; Jan. 26, 2005; Jan. 23, 2007; Jan. 20, 2011;
744 Jan. 29, 2015; Feb. 1, 2023.]

745 20B. When the General Appropriation Bill is reported by the committee on Ways and Means,
746 it shall be made available to all members electronically and to the public via the website of the
747 General Court in a format to be determined by the Speaker in consultation with the Clerk. The
748 committee on Ways and Means shall provide the membership with an electronic copy of its
749 proposed text of said General Appropriation Bill, and an executive summary which shall include
750 a list of outside sections, and a short summary of each outside section prior to full House
751 consideration of such bill. When the House considers said General Appropriation Bill, it shall be
752 read a second time; provided further that amendments relative to enhancing or reducing revenue
753 shall only be considered prior to the third reading of said bill to be in order, and that all other
754 amendments to the General Appropriations Bill shall only be considered subsequent to the third
755 reading of said bill.

756 [Adopted Jan. 9, 2003, Amended Jan. 23, 2007; Feb. 11, 2009; Feb. 1, 2023.]

757 21. Whenever the committee on Ways and Means reports an appropriation bill or capital
758 outlay bill, it shall make available to the members a report which includes an explanation of any
759 increase or decrease of five percent or more which results in an increase or decrease of one
760 million dollars or more for any item for which the Governor has made a recommendation, and an
761 explanation for the deletion of an item recommended by the Governor, and for the addition of an
762 item for which the Governor has made no recommendation. [25A.] (27A.)

763 22. Bills and resolves when ordered to a third reading shall be referred forthwith to the
764 committee on Bills in the Third Reading, which shall examine and correct them, for the purpose

765 of avoiding repetitions and unconstitutional provisions, and insuring accuracy in the text and
766 references, and consistency with the language of existing statutes; but any change in the sense or
767 legal effect, or any material change in construction, shall be reported to the House as an
768 amendment.

769 The committee on Bills in the Third Reading may consolidate into 1 bill any 2 or more related
770 bills referred to it, whenever legislation may be simplified thereby.

771 Resolutions received from and adopted by the Senate or introduced or reported into the
772 House, after they are read and before they are adopted, shall be referred to the committee on
773 Bills in the Third Reading.

774 Amendments of bills, resolves and resolutions adopted by the Senate and sent to the House
775 for concurrence, shall, subsequently to the procedure required by Rule 35 in respect to
776 amendments, also be referred, in like manner, to the committee on Bills in the Third Reading.

777 When a bill, resolve or resolution has been so referred, no further action shall be taken until a
778 report thereon has been made by the committee. Accompanying said report shall be a written
779 explanation prepared by the committee defining any changes made in a bill, resolve or resolution
780 so as to facilitate the proceedings of the House.

781 If a bill or resolve referred to the committee on Bills in the Third Reading requires a two-
782 thirds vote because it contains an emergency preamble, or if it provides for the borrowing of
783 money by the Commonwealth and comes within the provisions of Section 3 of Article LXII of
784 the Amendments to the Constitution, or provides for the giving, loaning or pledging of the credit
785 of the Commonwealth and comes within the provisions of Section 1 of Article LXII (as amended
786 by Article LXXXIV) of the Amendments to the Constitution, or provides, upon recommendation

of the Governor, for a special law relating to an individual city or town and comes within the provisions of clause (2) of Section 8 of Article LXXXIX of the Amendments to the Constitution or provides for environmental protection within the provisions of Article XLIX as amended by Article XCVII, the committee shall plainly indicate the fact on the outside of the bill or resolve, or on a wrapper or label attached thereto. [26.] (33.)

[Amended Jan. 12, 1983; Jan. 11, 1985; May 5, 1993; Jan. 29, 2015; Feb. 1, 2023.]

23. Bills and resolves prepared for final passage shall be certified by the Clerk of the House, after comparison, to be the same as the bills or resolves passed to be engrossed; and if found to be properly prepared, the Clerk shall so endorse on the envelope thereof; and the question on enactment or final passage or adopting an emergency preamble shall be taken thereon, without further reading, unless specifically ordered.

When a bill prepared for final passage contains an emergency preamble or when it provides for the borrowing of money by the Commonwealth and comes within the provisions of Section 3 of Article LXII of the Amendments to the Constitution, or provides for the giving, loaning or pledging of the credit of the Commonwealth and comes within the provisions of Section 1 of Article LXII (as amended by Article LXXXIV) of the Amendments to the Constitution, or provides, upon recommendation of the Governor, for a special law relating to an individual city or town and comes within the provisions of clause (2) of Section 8 of Article LXXXIX of the Amendments to the Constitution, or provides for environmental protection within the provisions of Article XLIX as amended by Article XCVII, the Clerk shall plainly indicate the fact on the envelope thereof. [27.] (34.) [See Rule 40.]

[Amended Jan. 12, 1983; Jan. 29, 2015.]

809 23A. No member of the House, except the Speaker, Speaker pro Tempore, Majority Leader,
810 Assistant Majority Leader, Second Assistant Majority Leader, Minority Leader, Assistant
811 Minority Leader, Second Assistant Minority Leader, Third Assistant Minority Leader, Vice-
812 Chairperson of the Committee on Ways and Means, Assistant Vice-Chairperson of the
813 Committee on Ways and Means and committee chairs with respect to committee business, shall
814 receive privileges or compensation for postage which is greater than seventy-five percent of the
815 amount allowed as standard practice during the 186th biennial session of the General Court, as
816 determined by the House Business Manager.

817 [Adopted Jan. 11, 1985; Amended Jan. 24, 2001; Jan. 26, 2005; Jan. 20, 2011; Feb. 1, 2023.]

818 24. (a)(1) Petitions, recommendations and reports of state officials, departments, commissions
819 including legislative commissions, and boards, special reports including legislation initiated by
820 the Committee on Ethics pursuant to rule 16, and reports of special committees and commissions
821 including legislative commissions, shall be filed with the Clerk in a format to be determined by
822 said Clerk, who shall, unless they are subject to other provisions of these rules or the rules of the
823 two branches, refer them, with the approval of the Speaker, to the appropriate committees,
824 subject to such change of reference as the House may make. The reading of all such documents
825 may be dispensed with, but they shall be entered in the Journal of the same or the next legislative
826 day after such reference except as provided in Joint Rule 13.

827 (2) All orders, including motions or orders proposed for joint adoption, resolutions and other
828 papers intended for presentation, except those hereinbefore mentioned, shall be filed with the
829 Clerk in a format to be determined by said Clerk, who shall, prior to the procedure required by

830 other provisions of these rules or of the rules of the two branches, refer them to the committee on
831 Rules.

832 (b) Resolutions for adoption by the House only or resolutions for joint adoption shall only be
833 considered for adoption in the House if the resolution meets the criteria set forth in this rule.

834 (c) Resolutions shall consist of: (i) no more than 5 clauses beginning with the word
835 “WHEREAS”, which shall contain statements of facts or opinions; and (ii) no more than 2
836 clauses beginning with the word “RESOLVED”.

837 (d) Resolutions shall recognize, honor, commend, celebrate or commemorate a momentous
838 achievement, special occasion or significant event or date; provided, however, that the following
839 resolutions shall not be considered for adoption:

840 (i) resolutions recognizing, honoring, commending, celebrating or commemorating the
841 birthday of a person under the age of 80;

842 (ii) resolutions recognizing, honoring, commending, celebrating or commemorating a
843 wedding anniversary of a married couple of less than 50 years;

844 (iii) resolutions recognizing, honoring, commending, celebrating or commemorating an
845 anniversary of an organization of less than 20 years;

846 (iv) resolutions recognizing, honoring, commending, celebrating or commemorating a class
847 reunion;

848 (v) resolutions recognizing, honoring, commending, celebrating or commemorating a for-
849 profit organization;

850 (iv) resolutions proclaiming certain days, weeks or months;

851 (vii) resolutions that includes a statement of policy or ideology.

852 (e) Suspension of subsections (b) through (d) of this rule shall require unanimous consent of
853 the members present.

854 (3) Petitions and other papers so filed which are subject to the provisions of Joint Rule 7A,
855 7B, or 9 shall be referred by the Clerk to the committee on Rules. Petitions and other papers so
856 filed, which are subject to the provisions of the second paragraph of Joint Rule 12, shall, prior to
857 the procedure required by said rule, be referred by the Clerk to the committee on Rules. The
858 reading of all such papers may be dispensed with, but they shall be entered in the Journal of the
859 same or the next legislative day after such reference.

860 (4) Matters which have been placed on file during the preceding year may be taken from the
861 files by the Clerk upon request of any member or member-elect; and matters so taken from the
862 files shall be referred or otherwise disposed of as provided above.

863 (5) Recommendations and special reports of state officials, departments, commissions and
864 boards, reports of special committees and commissions, bills and resolves accompanying
865 petitions, recommendations and reports, and resolutions shall be made available under the
866 direction of the Clerk, who may cause to be made available, with the approval of the Speaker,
867 any other documents filed as herein provided.

868 (6) All such legislation and reports filed with the Clerk shall be submitted in a format
869 prescribed by said Clerk. Said documents shall contain the name or names of the primary
870 sponsors and a list of the names of all petitioners praying for the legislation. Additional names

871 may be added to the list of the petitioners; provided, however, that, such additional names shall
872 be submitted in a format to be determined by the Clerk.

873 (7) Any petition so submitted that is a refile of a measure submitted in a previous session shall
874 include, in the appropriate space provided, the session year for which the measure was filed and
875 the House or Senate bill number or docket number assigned to such measure in such previous
876 session.

877 (8) Debate upon the suspension of this rule shall be limited to 10 minutes, 3 minutes for each
878 member, and the Speaker shall recognize the member presenting the order, resolution or petition
879 first; provided, however, that suspension of this rule shall require unanimous consent of the
880 members present. Any order, except such order that would amend the Rules of the House,
881 resolution or petition referred to the committee on Rules after the question of suspension of this
882 rule has been negatived, or any order, resolution or petition filed after the beginning of the
883 session and referred to the committee on Rules, shall not be discharged from said committee
884 except by unanimous consent of the House. Motions to discharge the committee on Rules shall
885 be subject to the provisions of paragraph 2 of Rule 28. [28.] (20.) [See Rules 36 and 85.]

886 [Amended April 27, 1981; Jan. 9, 1989; Jan. 9, 1991; Jan. 26, 2005; Feb. 11, 2009; Jan. 29,
887 2015; Jan. 30, 2019; Jul. 7, 2021; Feb. 1, 2023.]

888 25. Every petition for legislation shall be accompanied by a bill or resolve embodying the
889 legislation prayed for. [29.] [See Joint Rule 12.]

890 26. When the object of an application can be secured without a special act under existing
891 laws, or, without detriment to the public interests, by a general law, the committee to which the
892 matter is referred shall report such general law or ought not to pass, as the case may be. The

893 committee may report a special law on matters referred to it upon (1) a petition filed or approved
894 by the voters of a city or town, or the mayor and city council, or other legislative body, of a city,
895 or the town meeting of a town, with respect to a law relating to that city or town; (2) a
896 recommendation by the Governor; or (3) matters relating to erecting and constituting
897 metropolitan or regional entities, embracing any two or more cities and towns, or established
898 with other than existing city or town boundaries, for any general or special public purpose or
899 purposes. [30.] (16.) [See Joint Rule 7.]

900 [Amended Feb. 11, 2009.]

901 27. With the exception of matters referred to the committee on Rules under the provisions of
902 paragraph (3) of Rule 24, committees shall report on all matters referred to them. The committee
903 on Ways and Means shall report the General Appropriation Bill not later than the second
904 Wednesday of May; and provided further that said committee shall make available to the
905 members all data compiled for justification of budgetary recommendations in all appropriation
906 bills.

907 The House chair of each joint standing committee shall make final report on all matters
908 referred to and heard by their committee prior to the third Wednesday of December of the first
909 annual session of the General Court by not later than 60 calendar days after the matter is heard;
910 provided, however, that an additional 30 calendar days may be granted on a matter by the House
911 chair who shall notify the Clerk of said extension. After the expiration of such 90-day period, the
912 House shall approve by unanimous consent an extension order submitted by the House members
913 of the joint committee for any additional time for further consideration of the matter by the
914 committee. However, a committee shall not make final report after, and the House shall not

915 approve of an extension order that extends consideration of a matter beyond, the third
916 Wednesday in March of the second annual session of the General Court. For matters referred to a
917 joint standing committee and heard by said committee after the third Wednesday of December of
918 the first annual session, the committee shall make final report by not later than 60 calendar days
919 after the matter is heard, or by the third Wednesday in March of the second annual session,
920 whichever occurs later. For all matters referred to the committee on Health Care Financing after
921 the third Wednesday in March of the second annual session which were initially referred to
922 another joint standing committee, the committee shall make final report not later than the last
923 Wednesday of May of the second annual session.

924 When the time within which joint standing committees are required to report has expired, all
925 matters upon which no report has then been made shall forthwith be reported by the House chair
926 with a recommendation to study the matter.

927 [Amended April 18, 1979; Jan. 14, 1997; Jan. 29, 2015.]

928 27A. [Omitted Jan. 23, 2007.]

929 28. (1) Motions directing the committee on Ways and Means to report certain matters to the
930 House, or motions discharging said committees from further consideration of certain matters,
931 shall not be considered until the expiration of seven calendar days and shall require a majority
932 vote of the members present and voting for adoption. Committees so directed to report shall file
933 a report with the Clerk within 4 legislative days. The committee on Ways and Means may not be
934 directed to report or be discharged from further consideration of any appropriation or capital
935 outlay measure.

936 (2) The committee on Rules, except as provided in Rule 24, and the committee on Bills in the
937 Third Reading shall not be discharged from consideration of any measure or be directed to report
938 on any measure within 10 calendar days of its reference without the unanimous consent of the
939 House, or after such 10 day period except by a vote of a majority of the members present and
940 voting thereon.

941 (3) Matters discharged under the provisions of this rule shall be placed in the Orders of the
942 Day for the next sitting. Petitions discharged under the provisions of this rule shall be considered
943 as favorably reported and the bill, resolve, resolution or order accompanying such petitions shall
944 be placed in the Orders of the Day for the next sitting.

945 (4) During the last week of the session, the provisions of paragraphs (1) and (3) of this rule
946 shall be inoperative.

947 (5) A second motion to discharge a matter from a committee or a second motion to direct a
948 committee to report a matter shall not be entertained until the first such motion has been disposed
949 of.

950 (6) As an alternative procedure to that provided under the provisions of this rule, the members
951 of the House may, by filing a petition signed by a majority of the members elected to the House,
952 discharge the House committee on Ways and Means, the House committee on Bills in the Third
953 Reading, and the House committee on Rules from further consideration of a legislative matter.
954 Seven days following the filing of the petition with the House Clerk, the committee shall be
955 discharged from further consideration of the legislative matter specified in the petition and the
956 House Clerk shall place the matter in the Orders of the Day for the next calendar day that the
957 House is meeting.

958 (7) For the purpose of this rule, matters not appearing on the Calendar which are not before
959 any committee shall be deemed to be before the Rules committee. Notwithstanding the previous
960 sentence, a bill which has been engrossed by the House and Senate shall be placed before the
961 House for enactment. Any member may request to the House that a matter engrossed in the
962 House and Senate, returned for final passage by the engrossing division, and reviewed and
963 released by the Committee on Bills in the Third Reading be placed before the House for
964 enactment. The Speaker shall, in response to such a request of a member, put the matter before
965 the House at the conclusion of the matter then pending.

966 (8) This rule shall not be suspended unless by unanimous consent of the members present.
967 (27C, 32A.)

968 [Amended Jan. 12, 1981; April 27, 1981; Jan. 12, 1983; Nov. 17, 1983; Jan. 11, 1985; Jan. 9,
969 1989; Jan. 9, 1991; Jan. 24, 2001; Jan. 9, 2003; Jan. 26, 2005, Jan. 23, 2007; Jan. 29, 2015.]

970 28A. [Adopted Jan. 11, 1985; Amended Jan. 9, 2003; Jan. 29, 2015; Omitted.]

971 REGULAR COURSE OF PROCEEDINGS.

972 Petitions.

973 29. The member presenting a petition shall endorse their name thereon; and the reading
974 thereof shall be dispensed with, unless specially ordered. [37.] (18.)

975 [Amended Jan. 11, 1985; Jan. 30, 2019.]

976 Motions Contemplating Legislation, etc.

977 30. All motions contemplating legislation shall be founded upon petition, except as follows:

978 The committee on Ways and Means may originate and report appropriation bills as provided
979 in Rule 20. Messages from the Governor shall, unless otherwise ordered, be referred to the
980 appropriate committee, which may report by bill or otherwise thereon. A similar disposition
981 shall, unless otherwise ordered, be made of reports by state officers and committees authorized to
982 report to the Legislature, and similar action may be had thereon.

983 Messages from the Governor returning appropriation bills, or parts of appropriation bills, with
984 objections or reductions of sections or items thereof, shall be reconsidered subsequent to a report
985 of the committee on Ways and Means. Messages or recommendations from the Governor shall
986 be filed with the Clerk in a format to be determined by the Clerk. [40.] (19.)

987 [Amended Jan. 24, 2001.]

988 Bills and Resolves.

989 31. Bills shall be drafted in a format approved by the Counsel to the House and submitted in a
990 format to be determined by the Clerk. Bills amending existing laws shall not provide for striking
991 words from, or inserting words in, such laws, unless such course is best calculated to show
992 clearly the subject and nature of the amendment. No repealed law, and no part of any repealed
993 law, shall be re-enacted merely by reference. [42.] (17.)

994 [Amended Jan. 9, 2003; Jan. 26, 2005; Jan. 29, 2015.]

995 32. If a committee to which a bill is referred reports that the same ought not to pass, the
996 question shall be “Shall this bill be rejected?”. If the question on rejection is negatived, the bill, if
997 it has been read but once, shall be placed in the Orders of the Day for the next sitting for a
998 second reading without question; otherwise it shall be placed in the Orders of the Day for the

999 next sitting, pending the question on ordering to a third reading, or to engrossment, as the case
1000 may be. [43.] (30.)

1001 [Amended Jan. 30, 2019.]

1002 32A. [Omitted Jan. 26, 2005.]

1003 33. Bills involving an expenditure of public money or grant of public property, or otherwise
1004 affecting the state finances, unless the subject matter has been acted upon by the joint committee
1005 on Ways and Means, shall, after their first reading, be referred to the committee on Ways and
1006 Means, for report on their relation to the finances of the Commonwealth.

1007 New provisions shall not be added to such bills by the committee on Ways and Means, unless
1008 directly connected with the financial features thereof.

1009 Orders reported in the House or received from the Senate involving the expenditure of public
1010 money for special committees, shall, before the question is taken on the adoption thereof, be
1011 referred to the committee on Ways and Means, whose duty it shall be to report on their relation
1012 to the finances of the Commonwealth.

1013 Every such bill involving a capital expenditure for new projects, or an appropriation for
1014 repairs, or any legislation, the cost of which, in the opinion of the committee, exceeds the sum of
1015 one hundred thousand dollars when reported into the House by the committee on Ways and
1016 Means, shall be accompanied by a fiscal note indicating the amount of public money which will
1017 be required to be expended to carry out the provisions of the proposed legislation, together with
1018 an estimate of the cost of operation and maintenance for the first year if a new project is
1019 involved. [44.] (27.)

1020 [Amended April 18, 1979; Jan. 12, 1981; Jul. 17, 2003; Jan. 26, 2005.]

1021 33A. Copies of all bills shall be available, in a format to be determined by the Speaker in
1022 consultation with the Clerk, to all members of the House and the public electronically via the
1023 website of the General Court; provided, however, that any bill or resolve to be considered by the
1024 House at a formal session shall be available to all members electronically and to the public via
1025 the website of the General Court no later than 12:00 P.M. the day prior to consideration thereof
1026 by the House in a formal session; provided further that, to the extent practicable, a summary of
1027 any bill containing meaningful policy changes to be considered by the House in a formal session
1028 shall be made available by the chair of the joint standing committee which had jurisdiction of the
1029 bill, to all members of the House and the public via the website of the General Court prior to the
1030 commencement of roll calls for the formal session in which the bill will be considered.

1031 All amendments offered by members to any matter in the House shall be submitted in a
1032 format to be determined by the Clerk in consultation with the Speaker; provided, however, that
1033 an amendment to any matter to be considered by the House at a formal session shall be filed by
1034 5:00 P.M. on the day the bill or resolve is made available to the members pursuant to the first
1035 paragraph of this rule. Amendments shall be considered by the House chronologically as
1036 submitted to the Clerk, except for an amendment in the second degree; provided that all
1037 amendments shall be drafted in proper form acceptable to the Clerk; and provided further that the
1038 Clerk shall print each amendment so filed and such printed copy shall be considered to be the
1039 official amendment for that bill and there shall be available to the members a duplicate copy of
1040 each amendment. (33A.)

1041 When the House considers any bill or resolve, other than the General Appropriations Bill, it
1042 shall be read a second time and, subsequent to the consideration of any amendments
1043 recommended by a committee or committees, it shall forthwith be considered by the House, the
1044 question being on ordering it to a third reading, without any other amendments. A bill or resolve
1045 so ordered to a third reading shall be immediately referred to the committee on Bills in the Third
1046 Reading and, upon being released by said committee, it shall be read a third time and shall then
1047 be open to amendments, the main question being on passing the bill or resolve to be engrossed.

1048 Except for consolidated amendments or perfecting amendments offered by the committee on
1049 Ways and Means, no proposition on a subject different from the amendment under consideration
1050 shall be admitted under color of a further amendment to any bill or resolve. A consolidated
1051 amendment to any bill or resolve, offered by the committee on Ways and Means, shall be a
1052 motion offering an amendment in the second degree.

1053 [Adopted Nov. 17, 1983; Amended Nov. 28, 1984; Jan. 12, 1987; Jan. 9, 1991; Jan. 17,
1054 1995; Jan. 9, 2003; Jan. 26, 2005, Jan. 23, 2007; Jan. 29, 2015; Jul. 7, 2021; Feb. 1, 2023.]

1055 33B. [Omitted Jan. 26, 2005.]

1056 33C. [Omitted Jan. 26, 2005.]

1057 33D. [Omitted Jan. 26, 2005.]

1058 33E. No consolidated amendment offered by the committee on Ways and Means shall be
1059 considered by the House until the expiration of at least 30 minutes after the consolidated
1060 amendment shall have been first filed with the Clerk and made available to the members. This
1061 rule shall not be suspended unless by unanimous consent of the members present.

1062 [Added Feb. 4, 2010; Amended Jan. 29, 2015.]

1063 33F. No consolidated amendment shall be adopted except by a roll call vote.

1064 [Added Feb. 2, 2017.]

1065 34. Bills from the Senate, after their first reading, shall be referred to a committee of the
1066 House. [45.] (26.)

1067 [Amended Jan. 26, 1999.]

1068 35. Amendments proposed by the Senate, and sent back to the House for concurrence, shall
1069 be referred to the committee on Bills in the Third Reading, provided that the journal shall reflect
1070 the referral; and provided further that subsequent to a report from said committee, the
1071 amendments shall be considered forthwith. [46.] (36.)

1072 [Amended April 18, 1979; Jan. 12, 1981; Jan. 26, 2005, Jan. 23, 2007; Jan. 23, 2013.]

1073 36. No bill shall be proposed or introduced unless received from the Senate, reported by a
1074 committee, or moved as an amendment to the report of a committee. [47.] (36.)

1075 37. Bills, resolves and other papers that have been, or, under the rules or usage of the House,
1076 are to be made available in a format to be determined by the Speaker in consultation with the
1077 Clerk, shall be read by their titles only, unless the full reading is requested by vote of a majority
1078 of those members present and voting.

1079 [Amended Jan. 9, 2003, Amended, Jan. 23, 2007.] [48.] (29.)

1080 38. When a bill, resolve, order, petition or memorial has been finally rejected or disposed of
1081 by the House, no measure substantially the same shall be introduced by any committee or

1082 member during the same session. This rule shall not be suspended unless by unanimous consent
1083 of the members present. [49.] (54.)

1084 39. No bill shall be passed to be engrossed without having been read on three separate
1085 legislative days. [51.] (28.)

1086 [Amended Jan. 11, 1985.]

1087 40. No engrossed bill shall be amended, except by striking out the enacting clause. A motion
1088 to strike out the enacting clause of a bill shall be received when the bill is before the House for
1089 enactment. If the bill contains an emergency preamble, a motion to suspend this rule may be
1090 received before the adoption of the emergency preamble and, if suspended, the amendment may
1091 contain a new emergency preamble. This rule shall not apply to a bill or resolve returned by the
1092 Governor with a recommendation of amendment in accordance with the provisions of Article
1093 LVI of the Amendments to the Constitution; nor shall it apply to amendments of engrossed bills
1094 proposed by the Senate and sent to the House for concurrence, which amendments shall be
1095 subject to the provisions of Rule 35, provided, however, that an affirmative vote on a motion to
1096 suspend this rule shall be required in order to offer an amendment to such an engrossed bill when
1097 the question before the House is on adoption of an emergency preamble, re-enactment or
1098 enactment, as the case may be. [53.] (49.)

1099 [Amended, Jan. 23, 2007; Jan. 20, 2011; Jan. 23, 2013; Jan. 29, 2015.]

1100 41. Bills received from the Senate and bills reported favorably by committees, when not
1101 referred to another standing committee of the House, shall, prior to being placed in the Orders of
1102 the Day, be referred to the committee on Steering, Policy and Scheduling. Resolutions received

1103 from and adopted by the Senate, or reported in the House by committees, shall, if proposed for
1104 joint adoption, be referred to said committee on Steering, Policy and Scheduling. [56.] (26.)

1105 [Amended Jan. 14, 1997; Jan. 26, 1999.]

1106 42. Reports of committees, not by bill or resolve, including orders if proposed for joint
1107 adoption, after they are received from the Senate, or made in the House, as the case may be,
1108 shall, unless subject to the provisions of any other House or joint rules, be referred to the
1109 committee on Steering, Policy and Scheduling; provided that the report of a committee asking to
1110 be discharged from further consideration of a subject, and recommending that it be referred or
1111 recommitted to another committee, or a report of a committee recommending that a matter be
1112 placed on file, shall be immediately considered. Reports of committees on proposals for
1113 amendments to the Constitution shall be dealt with in accordance with the provisions of Joint
1114 Rule 23. [57.] (36.)

1115 [Amended Jan. 14, 1997; Jan. 29, 2015.]

1116 42A. The Clerk shall, prior to 3 o'clock P.M., on the day preceding a session, make available
1117 by electronic communication or other means, a list of all reports of the committee on Steering,
1118 Policy and Scheduling, asking to be discharged from further consideration of subjects, and
1119 recommending that the subjects be referred to other committees.

1120 [Adopted Jan. 26, 2005; Amended Jan. 29, 2015.]

1121 43. Bills ordered to a third reading shall be placed in the Orders of the Day for the next day
1122 for such reading. [58.] (32.)

1123 Special Rules Affecting the Course of Proceedings.

1124 44. The Speaker may designate when an informal session of the House shall be held provided
1125 said Speaker gives notice of such informal session at a prior session of the House. The Speaker
1126 may, in cases of emergency, cancel a session or declare any session of the House to be an
1127 informal session. At an informal session the House shall only consider reports of committees,
1128 papers from the Senate, bills for enactment or resolves for final passage, bills containing
1129 emergency preambles and the matters in the Orders of the Day. Motions to reconsider moved at
1130 such informal session shall be placed in the Orders of the Day for the succeeding day, and no
1131 new business shall be entertained, except by unanimous consent.

1132 Formal debate, or the taking of the sense of the House by yeas and nays shall not be
1133 conducted during such informal session.

1134 Upon the receipt of a petition signed by at least a majority of the members elected to the
1135 House, so requesting, the Speaker shall, when the House is meeting in informal session under the
1136 provisions of Joint Rule 12A, designate a formal session, to be held within seven days of said
1137 receipt, for the purpose of considering the question of passage of a bill, notwithstanding the
1138 objections of the Governor, returned pursuant to Article 2, Section 1, Chapter 1, Part 2 of the
1139 Massachusetts Constitution. This rule shall not be suspended unless by unanimous consent of the
1140 members present. [59.] (5A.)

1141 The House may meet in a formal session notwithstanding the provisions of Joint Rule 12A
1142 upon the adoption of an order filed by the committee on Rules pursuant to Rule 7C.

1143 [Amended Jan. 11, 1985; Jan. 12, 1987; Jan. 17, 1995; Jan. 14, 1997; Jan. 24, 2001; Jan. 9,
1144 2003; Feb. 11, 2009.]

1145 45. After entering upon the consideration of the Orders of the Day, the House shall proceed
1146 with them in regular course as follows: Matters not giving rise to a motion or debate shall first be
1147 disposed of in the order in which they stand in the Calendar; after which the matters that were
1148 passed over shall be considered in like order and disposed. The provisions of this paragraph shall
1149 not be suspended unless by unanimous consent of the members present.

1150 Notwithstanding the provisions of this rule, during consideration of the Orders of the Day, the
1151 committee on Ways and Means and the committee on Bills in the Third Reading may present
1152 matters for consideration of the House after approval of two-thirds of the members present and
1153 voting, without debate. [59.] (37.) [See Rule 47.]

1154 [Amended Jan. 12, 1981; Jan. 12, 1983; Feb. 11, 2009.]

1155 46. When the House does not finish the consideration of the Orders of the Day, those which
1156 had not been acted upon shall be the Orders of the Day for the next and each succeeding day
1157 until disposed of, and shall be entered in the Calendar, without change in their order, to precede
1158 matters added under Rule 7A; provided, however, that all other matters shall be listed in
1159 numerical order by Calendar item.

1160 The unfinished business in which the House was engaged at the time of adjournment shall
1161 have the preference in the Orders of the Day for the next day. [60.] (35.)

1162 [Amended Jan. 12, 1987; Jan. 26, 1999.]

1163 47. No matter which has been duly placed in the Orders of the Day shall be discharged
1164 therefrom, or considered out of the regular course. [61.] (38.) [See Rule 45.]

1165 Voting.

1166 48. Members desiring to be excused from voting shall make application to that effect before
1167 the division of the House or the taking of the yeas and nays is begun. Such application may be
1168 accompanied by a brief statement of reasons by the member. The Clerk shall, prior to the first
1169 roll call of the sitting, announce the name of any member who has informed the Clerk to not call
1170 their name or lock their voting station. The Clerk shall also announce prior to any subsequent roll
1171 call of the sitting the name of any member who had informed said Clerk not to call their name or
1172 lock their voting station since the taking of the immediately preceding roll call.

1173 A member absent from the House for a formal session period of a day or longer shall notify
1174 the Clerk in writing of the intended absence. A member absent during a formal session for an
1175 extended period or for the remainder of the session shall notify the Clerk in person. The Clerk
1176 shall provide a written notice to any such absent member.

1177 The Clerk shall disable the voting station of any such member notifying the Clerk of an
1178 absence pursuant to this Rule. The Clerk shall also disable the voting station of any member
1179 failing to answer the first non-quorum roll call of a legislative sitting; provided, however, that the
1180 Clerk shall reactivate the voting station upon receiving notification of the member's return to the
1181 House Chamber. ([64.] (57.))

1182 [Amended Feb. 11, 2009; Jan. 30, 2019.]

1183 49. (a) If the presence of a quorum is doubted, a count of the House shall be made. When a
1184 yea and nay vote is taken, the members, with the exception of the Speaker, shall vote only from
1185 their seats. A member who has been appointed by the Speaker to perform the duties of the Chair,
1186 or a person who has been elected Speaker pro Tempore, may designate some member or a court
1187 officer to cast a vote for said member on any vote taken on the electronic voting system while

1188 such member is presiding. Said designated member performing the duties of the Chair, or
1189 Speaker pro Tempore, may, if the Speaker is in the State House, cast a vote for the Speaker. The
1190 Speaker shall state the pending question before opening the system for voting.

1191 The Speaker may direct the Clerk to cast a vote for a member who is in the House Chamber,
1192 but who is unable to vote due to a malfunction of their voting station or inability to open their
1193 voting station.

1194 (b) Except in the case of a vote to ascertain the presence of a quorum, if a member is
1195 prevented from voting personally using the electronic voting system because of physical
1196 disability, said member shall, if present in the State House, be excused from so voting and the
1197 Speaker shall assign a court officer to cast said member's vote so long as said physical disability
1198 continues; provided that the Speaker shall announce the action of the Chair to the membership
1199 prior to assigning a court officer to cast the member's vote and provided further that the Speaker
1200 shall announce the action to the membership the first time a vote is cast for that member on each
1201 successive day.

1202 (c) A member serving on active reserve military duty may participate remotely in a formal
1203 session, subject to the requirements and limitations of federal law and regulation, including, but
1204 not limited to, United States Department of Defense Directive 1344.10. A member serving on
1205 active reserve military shall notify the Clerk of such service as soon as practicable.

1206 (d) A member with a serious health condition may submit to Counsel appointed pursuant to
1207 Rule 13B a request for an accommodation to participate remotely in a formal session. Said
1208 request shall be accompanied by documentation from said member's health care provider that an

1209 accommodation to participate remotely is necessary. For purposes of this rule, a serious health
1210 condition shall include:

1211 (1) the member's own serious health condition, which includes illness, injury, impairment, or
1212 physical or mental conditions requiring inpatient care or continuing treatment by a health care
1213 provider, involving more than three days of incapacity; or

1214 (2) care for the member's parent, child or spouse with a serious health condition.

1215 For purposes of this rule, a serious health condition shall not include routine, health-related
1216 visits or examinations or temporary conditions or other short-term illnesses involving less than
1217 three days of incapacity.

1218 (e) A member shall be entitled to participate remotely in a formal session in connection with
1219 any condition or limitation related to a member's pregnancy, including pregnancy loss, and may
1220 participate remotely in formal session for 20 weeks after the birth or adoption of a child by a
1221 member or the member's partner, or placement of a child in foster care with a member or the
1222 member's partner. A member who intends to participate remotely pursuant to this subsection
1223 shall notify Counsel of the need for an accommodation as well as the expected length of the
1224 accommodation.

1225 (f) Counsel shall not approve, without the prior written approval of the Chair of the
1226 committee on Rules, any request for an accommodation to participate remotely in a formal
1227 session that does not satisfy the requirements of this subsection.

1228 (g) Upon approval of a request for accommodation to participate remotely received pursuant
1229 to subsection (d) or subsection (f), Counsel shall notify the Clerk that the member filing the

1230 request has been authorized to participate remotely. Other than the notification provided to the
1231 Clerk or to the Chair of the committee on Rules, as required, Counsel shall maintain any request
1232 for accommodation pursuant to this rule as confidential.

1233 (h)(1) A member authorized to participate remotely in a formal session pursuant to subsection
1234 (d) through subsection (f), inclusive, shall have the same privileges, rights and responsibilities as
1235 if the member were physically present in the House Chamber, including without limitation, the
1236 right, privilege and responsibility to cast votes on all questions or other matters brought to a vote
1237 and the ability to take the oath required pursuant to Part the Second, Chapter VI, Article I of the
1238 Constitution of the Commonwealth.

1239 (i) The Journal of the House for any formal session of the House where a member is
1240 participating remotely in a formal session pursuant to this rule shall not specify which members
1241 participated remotely. [Amended April 18, 1979; Jan. 12, 1987; Jan. 9, 1991; Jan. 9, 2003; Jan.
1242 20, 2011; Feb. 11, 2009; Jan. 30, 2019; Feb. 1, 2023.]

1243 50. When a question is put, the sense of the House shall be taken by the voices of the
1244 members, and the Speaker shall first announce the vote as it appears to the Speaker by the sound.
1245 If the Speaker is unable to decide by the sound of the voices, or if the announcement made
1246 thereupon is doubted by a member rising in their place for that purpose, the Speaker shall order a
1247 division of the number voting in the affirmative and in the negative, without further debate upon
1248 the question. [66.] (55.)

1249 [Amended Jan. 11, 1985; Feb. 11, 2009; Jan. 30, 2019.]

1250 51. When a return by division of the members voting in the affirmative and in the negative is
1251 ordered, the members for or against the question, when called on by the Speaker, shall rise in

1252 their places, and stand until they are counted. If, upon the taking of such a vote, the presence of a
1253 quorum is doubted, a count of the House shall be had, and if a quorum is present the vote shall
1254 stand. [67.]

1255 52. The sense of the House shall be taken by yeas and nays whenever required by ten percent
1256 of the members elected. The Speaker shall, after waiting up to an interval of twelve minutes,
1257 state the pending question and, after opening the electronic voting system, instruct the members
1258 to vote for not less than two minutes and no more than twenty-two minutes, the Speaker shall
1259 close said system and cause totals to be displayed and a record made of how each member
1260 present voted; provided, that if at any time during said voting period any standing, joint or
1261 conference committee is meeting in public or executive sessions, the Speaker shall leave the
1262 electronic voting machine open for not less than 5 minutes.

1263 Any member desiring to be recorded as being “present” when a yea and nay vote is taken on
1264 the electronic roll call system shall so notify the Clerk in person after said vote is ordered and
1265 before the vote is announced.

1266 In the event the electronic voting system is not in operating order, the roll of the House shall
1267 be called in alphabetical order; provided, however, that no member shall be allowed to vote or to
1268 answer “present” who was not on the floor before the vote is declared; provided, however, that a
1269 member, who was in the State House on a previous roll call, may be recorded by reporting to the
1270 Clerk within five minutes after such vote is closed, unless objection is made thereto and it is
1271 seconded; and provided further that the presiding officer shall not, for said purpose, interrupt the
1272 member who is speaking on the floor; provided, however, that such request may be announced to
1273 the House subsequent to the five minutes. The Speaker shall not entertain any requests beyond

1274 said five-minute period. Once the voting has begun it shall not be interrupted except for the
1275 purpose of questioning the validity of a member's vote before the result is announced. Except as
1276 heretofore provided, any member who shall vote or attempt to vote for another member or any
1277 person not a member who votes or attempts to vote for a member, or any member or other person
1278 who willfully tampers with or attempts to impair or destroy in any manner whatsoever the voting
1279 equipment used by the House, or change the records thereon shall be punished in such manner as
1280 the House determines; and provided further, that such a violation shall be reported to the Ethics
1281 Committee. [68.] (56, 57.)

1282 Upon completion of the tally by the Clerk and the announcement of the vote by the Speaker,
1283 the results of all roll calls conducted shall be conspicuously posted on the website of the General
1284 Court.

1285 [Amended Jan. 12, 1983; Jan. 11, 1985; Jan. 12, 1987; Jan. 9, 1991; Jan. 24, 2001; Jan. 9,
1286 2003; Jan. 26, 2005; Feb. 11, 2009; Jan 20, 2011; Jul. 7, 2021; Feb. 1, 2023.]

1287 53. The call for yeas and nays shall be decided without debate. If the yeas and nays have been
1288 ordered before the question is put, the proceedings under Rules 50 and 51 relative to verification
1289 of the vote by the voices of the members or by a return of divisions shall be omitted; if not, they
1290 may be called for in lieu of a return by divisions when the Speaker's announcement is doubted
1291 by a member rising in their place, and, if then ordered, the proceedings under Rules 50 and 51
1292 shall be omitted. [69.] (52.)

1293 [Amended Jan. 26, 1999; Jan. 30, 2019.]

1294 Reconsideration.

1295 54. No motion to reconsider a vote shall be entertained unless it is made on the same day on
1296 which the vote was taken, or before the Orders of the Day have been taken up on the next day
1297 thereafter on which a quorum is present. If reconsideration is moved on the same day, the motion
1298 shall be placed first in the Orders of the Day for the succeeding day; but, if it is moved on the
1299 succeeding day, the motion shall be considered forthwith except that if said motion is moved on
1300 a day on which an informal session has been designated, it shall be placed in the Orders of the
1301 Day for the succeeding day. If reconsideration is moved after July first of the second annual
1302 session and thereafter, on any main question, it shall be considered forthwith. This rule shall not
1303 prevent the reconsideration of a vote on a subsidiary, incidental or dependent question at any
1304 time when the main question to which it relates is under consideration; and provided, further,
1305 that a motion to reconsider a vote on any subsidiary, incidental or dependent question shall not
1306 remove the main subject under consideration from before the House, but shall be considered at
1307 the time when it is made. This rule shall not be suspended unless by unanimous consent of the
1308 members present. [70.] (53.)

1309 [Amended Jan. 12, 1981, Jan. 23, 2007.]

1310 55. When a motion for reconsideration is decided, that decision shall not be reconsidered, and
1311 no question shall be twice reconsidered; nor shall any vote be reconsidered upon any of the
1312 following motions:

1313 to recess,

1314 to adjourn,

1315 on sustaining a ruling of the Chair,

1316 to close debate at a specified time,
1317 to postpone if voted in the negative,
1318 to discharge or direct a committee to report,
1319 to commit or recommit,
1320 for second or subsequent legislative days,
1321 for the previous question, or
1322 for suspension of rules.

1323 This rule shall not be suspended unless by unanimous consent of the members present. [71.]
1324 (53.)

1325 [Amended Jan. 12, 1981; Jan. 12, 1983; Jan. 9, 1991.]

1326 56. Debate on motions to reconsider shall be limited to fifteen minutes, and no member shall
1327 occupy more than three minutes, but on a motion to reconsider a vote upon any subsidiary or
1328 incidental question, debate shall be limited to ten minutes, and no member shall occupy more
1329 than three minutes.

1330 If the House has voted to close debate on any question, a motion to reconsider said question
1331 shall be decided without debate. [72.] (52.)

1332 [Amended Jan. 12, 1981; Jan. 12, 1987.]

1333 RULES OF DEBATE.

1334 57. Every member, when about to speak, shall rise and respectfully address the Speaker and
1335 shall confine themselves to the question under debate. [73.] (39.)

1336 [Amended Jan. 11, 1985; Feb. 1, 2023.]

1337 58. Every member while speaking shall avoid personalities; and shall sit down when finished.
1338 No member shall speak out of their place without leave of the Speaker. [73.] (39.)

1339 When two or more members rise at the same time, the Speaker shall name the member
1340 entitled to the floor, preferring one who rises in their place to one who does not. [74.] (40.)

1341 [Amended Jan. 11, 1985; Jan. 30, 2019.]

1342 59. If a member repeatedly violates any of the rules of the House, or disrupts the orderly
1343 procedure of the House, the Speaker, after warning the member of such violations, shall call the
1344 member to order, and order that member to take their seat. A member so called to order shall lose
1345 the right to speak on the pending subject-matter but shall not be debarred from voting. A member
1346 so called to order shall remain seated until the House begins consideration of another subject-
1347 matter or unless the Speaker earlier returns to the member their rights to the floor.

1348 If a member so called to order refuses to immediately take their seat, the Speaker shall
1349 immediately name that member, who shall be escorted from the Chamber under escort of the
1350 Sergeant-at-Arms. The matter shall thereupon, on motion, be referred to a special committee of
1351 three to be appointed by the Speaker. Said special committee shall make a report to the House of
1352 its recommendations, which report shall be read and accepted.

1353 Having been named, a member shall not be allowed to resume their seat until said member
1354 has complied with the recommendations of the committee as accepted by the House.

1355 If, after a member is seated or named, the action of the Speaker is appealed, the House shall
1356 decide the case by a majority vote of the members present and voting, but if there is no
1357 immediate appeal, the decision of the Speaker shall be conclusive.

1358 [Amended Jan. 12, 1981; Jan. 11, 1985; Feb. 11, 2009; Jan. 30, 2019.]

1359 60. No member shall interrupt another while speaking except by rising to a point of order, to a
1360 question of personal privilege, to doubt the presence of a quorum, or to ask the person speaking
1361 to yield.

1362 Members may rise to explain matters personal to them by leave of the presiding officer, but
1363 shall not discuss pending questions in such explanations.

1364 Questions of personal privilege shall be limited to questions affecting the rights, reputation,
1365 and conduct of the member in their representative capacities.

1366 Members may rise to ask questions of parliamentary inquiry concerning the pending matter
1367 by leave of the presiding officer, but shall not debate the pending questions. [75.] (42.)

1368 [Amended Jan. 12, 1981; Feb. 11, 2009; Jan. 30, 2019.]

1369 61. No member shall speak more than once to the prevention of those who have not spoken
1370 and desire to speak on the same question.

1371 This prohibition shall not apply to those members designated by the committee or committees
1372 reporting the bill.

1373 No member shall occupy more than thirty minutes at a time while speaking on any question
1374 where debate is unlimited.

1375 Unless the operation of another rule provides to the contrary (such as previous question,
1376 limitation of debate, etc.), no member shall be prohibited from speaking more than once on any
1377 question when no other member who has not spoken is seeking recognition by the Chair. [76.]
1378 (41.)

1379 Motions.

1380 62. Every motion shall be reduced to writing, if the Speaker so directs. [77.] (44.)

1381 63. A motion need not be seconded, except an appeal from the decision of the Chair, and may
1382 be withdrawn by the mover if no objection is made. [78.] (44.)

1383 [Amended Jan. 12, 1981.]

1384 Limit of Debate.

1385 64. A motion to recess or adjourn shall always be first in order, and shall be decided without
1386 debate; and on the motions to close debate at a specified time, to postpone to a time certain, to
1387 commit or recommit, not exceeding ten minutes shall be allowed for debate, and no member
1388 shall speak more than three minutes. On the motion to discharge any committee, or on a motion
1389 directing any committee to report matters before it, not exceeding fifteen minutes shall be
1390 allowed for debate, and no member shall speak more than three minutes.

1391 If the main motion is undebatable, any subsidiary or incidental motion made relating to it
1392 shall also be decided without debate. [79.] (52.) [See Rules 56 and 83.]

1393 [Amended Jan. 12, 1981.]

1394 64A. Debate on the question on adoption of orders for second and subsequent legislative days
1395 shall be limited to ten minutes, and no member shall speak more than three minutes. After
1396 entering into a second or subsequent legislative day, the House shall immediately proceed to
1397 consideration of engrossed bills, reports of committees, papers from the Senate or the Orders of
1398 the Day. This rule shall not be suspended unless by unanimous consent of the members present.

1399 [Adopted Jan. 12, 1983.]

1400 65. When a question is before the House, until it is disposed of, the Speaker shall receive no
1401 motion that does not relate to the same, except the motion to recess or adjourn or some other
1402 motion that has precedence either by express rule of the House, or because it is privileged in its
1403 nature; and the Speaker shall receive no motion relating to the same, except,—

1404 for the previous question,

1405 to close debate at a specified time,

1406 to postpone to a time certain,

1407 to commit (or recommit),

1408 to amend, See Rules 66, 67 and 68

1409 See Rules 64, 69 and 70

1410 See Rules 64 and 70

1411 See Rules 64 and 71

1412 See Rules 72, 73, 74 and 75

1413 — which several motions shall have precedence in the order in which they are arranged in
1414 this rule. [80.] (46.)

1415 [Amended Jan. 11, 1985.]

1416 Previous Question.

1417 66. Any member may call for the previous question on the main question.

1418 The previous question shall be put in the following form: “Shall the main question be now
1419 put?” and all debate on the main question shall be suspended until the previous question is
1420 decided.

1421 The adoption of the previous question shall require the affirmative vote of two-thirds of the
1422 members present and voting and shall put an end to all debate, and bring the House to direct vote
1423 upon pending amendments, if any, in their regular order, and then upon the main question.

1424 A motion to reconsider the vote on any of the pending amendments shall be decided without
1425 debate. [81.]

1426 [Amended Jan. 12, 1981.]

1427 67. Any member may call for the previous question on any pending amendment.

1428 The previous question shall be put in the following form: “Shall the question on adoption of
1429 the amendment be now put?” and all debate shall be suspended until the previous question is
1430 decided.

1431 The adoption of the previous question on a pending amendment shall require the affirmative
1432 vote of two-thirds of the members present and voting and shall put an end to all debate and bring
1433 the House to a direct vote upon the pending amendment.

1434 A motion to reconsider the vote on the pending amendment shall be decided without debate.

1435 [Amended Jan. 12, 1981.]

1436 68. The previous question shall be decided without debate.

1437 Motion to Close Debate at a Specified Time.

1438 69. Debate may be closed at any time not less than thirty minutes from the adoption of a
1439 motion to that effect. This rule shall not be suspended unless by unanimous consent of the
1440 members present. [85.] (47.)

1441 Motion to Postpone to a Time Certain.

1442 70. When a motion is made to postpone to a time certain, and different times are proposed,
1443 the question shall first be taken on the most remote time; and the time shall be determined before
1444 the question is put on postponement, which may then be rejected if the House sees fit. [87.] (51.)

1445 Motion to Commit.

1446 71. When a motion is made to commit, and different committees are proposed, the question
1447 shall be taken in the following order:

1448 a standing committee of the House,

1449 a select committee of the House,

1450 a joint standing committee,

1451 a joint selected committee;

1452 and a subject may be recommitted to the same committee or to another committee at the pleasure

1453 of the House. [88.] (48.)

1454 Motion to Amend.

1455 72. A motion to amend an amendment is a motion offering an amendment in the second

1456 degree and may be received; a motion to amend an amendment in the second degree is a motion

1457 offering an amendment in the third degree and shall not be allowed. This rule shall not be

1458 suspended unless by unanimous consent of the members present. [89.]

1459 [Amended Jan. 12, 1983; Feb. 1, 2023.]

1460 73. No motion or proposition on a subject different from that under consideration shall be

1461 admitted under color of amendment. This rule shall not be suspended unless by unanimous

1462 consent of the members present. [90.] (50.)

1463 [Amended Jan. 12, 1987.]

1464 73A. No motion to amend a report from the committee on Ways and Means or a report from

1465 the committee on Bills in the Third Reading, when such an amendment contains an expenditure

1466 of public money or an increase or decrease in taxes, shall be considered unless a brief

1467 explanation of the amendment is stated.

1468 [Adopted Jan. 17, 1995; Amended Jan. 26, 1999.]

1469 74. A question containing two or more propositions capable of division shall be divided
1470 whenever desired by any member, if the question includes points so distinct and separate that,
1471 one of them being taken away, the other will stand as a complete proposition. The motion to
1472 strike out and insert shall be considered as one proposition and therefore indivisible. The
1473 question on ordering a bill or resolve to a third reading, or to be engrossed, or to be enacted, or
1474 similar main motions shall be considered as indivisible under this rule. This rule shall not be
1475 suspended unless by unanimous consent of the members present. [91.] (45.)

1476 [Amended Jan. 12, 1983.]

1477 75. In filling blanks, the largest sum and longest time shall be put first. [92.] (51.) [See Rule
1478 70.]

1479 Declaration of Recess.

1480 76. The Speaker may declare a recess of 15 minutes duration, or less.

1481 [Amended Jan. 9, 1991; Jan. 29, 2015.]

1482 Appeal.

1483 77. No appeal from the decision of the Speaker shall be entertained unless it is seconded; and
1484 no other business shall be in order until the question on the appeal has been disposed of. Debate
1485 shall be limited to 15 minutes on the question of sustaining a ruling by the Chair, and no member
1486 shall occupy more than three minutes. [94.] (43A.) [See Rule 2.]

1487 [Amended Jan. 9, 1989; Jan. 29, 2015.]

1488 Resolves.

1489 78. Such of these rules as are applicable to bills, whether of the House or of the Senate, shall
1490 apply likewise to such resolves as require the concurrence of the Senate and approval by the
1491 Governor in order to become law and have force as such. [95.]

1492 Seats.

1493 79. (1) The desk on the right of the Speaker shall be assigned to the use of the Clerk and such
1494 persons as they may employ to assist said Clerk, and that on the left to the use of the chair and
1495 vice-chair of the committee on Bills in the Third Reading.

1496 (2) The Speaker shall assign members to vacant seats. The seat assigned to any member, other
1497 than seats assigned under paragraph (1) of this rule, shall be their seat for the year and for such
1498 additional years as said member may elect so long as service in the House remains continuous.
1499 An exchange of seats may be made with the approval of the Speaker. [98.]

1500 [Amended Jan. 11, 1985; May 5, 1993; Jan. 30, 2019.]

1501 Privilege of the Floor.

1502 80. The following persons shall be entitled to admission to the House of Representatives,
1503 during the session thereof, to stand in an area designated by the Speaker in the rear of the
1504 Chamber, unless otherwise invited by said Speaker to occupy seats not numbered:

1505 (1) The Governor and the Lieutenant-Governor, members of the Executive Council, Secretary
1506 of the Commonwealth, Treasurer and Receiver-General, Auditor of the Commonwealth,
1507 Attorney-General, Librarian and Assistant Librarian;

1508 (2) The members of the Senate;

1509 (3) Authorized employees of the House and persons in the exercise of an official duty directly
1510 connected with the business of the House; or

1511 (4) Contestants for seats in the House, whose papers are in the hands of a special committee
1512 of the House, may be admitted, while their cases are pending, to seats to be assigned by the
1513 Speaker.

1514 No other person shall be admitted to the floor during the session, except upon the permission
1515 of the Speaker.

1516 No legislative agent or counsel may be admitted to the floor of the House Chamber during a
1517 session unless that part of the session is ceremonial in nature in which no other legislative
1518 business is conducted.

1519 The legislative reporters shall be entitled to the privileges of the reporters' galleries.

1520 This rule shall not be suspended unless by unanimous consent of the members present. [99.]
1521 (60, 61.)

1522 [Amended Jan. 9, 1991, Jan. 23, 2007; Jan. 30, 2019.]

1523 Representatives' Chamber and Adjoining Rooms.

1524 81. (a) Use of the Representatives' Chamber members' corridor or adjoining rooms shall be
1525 for official business or educational purposes only and shall be subject to the approval of the
1526 Speaker or the committee on Rules. The provisions of this paragraph shall not apply if the
1527 purpose of admittance is to attend a meeting in an adjoining room to which members of the
1528 general public are allowed to attend.

1529 (b) No legislative agent or counsel shall be admitted to the members' corridor or adjoining
1530 rooms. No other person shall be admitted to the members' corridor or adjoining rooms, except
1531 persons entitled to the privileges of the floor of the House unless upon written invitation of a
1532 member bearing the name of the member and the person the member invites. Upon entering, the
1533 invitation shall be given to the court officer assigned to the area. The provisions of this paragraph
1534 shall not apply if the purpose of admittance is to attend a meeting in an adjoining room to which
1535 members of the general public are allowed to attend.

1536 (c) No person shall be admitted to the north gallery of the House except upon a card of the
1537 Speaker.

1538 (d) Subject to the approval and direction of the committee on Rules during the session and of
1539 the Speaker after prorogation, the use of the reporters' galleries of the House Chamber shall be
1540 under the control of the organization of legislative reporters known as the Massachusetts State
1541 House Press Association and the State House Broadcasters Association.

1542 (e) Every legislative reporter desiring admission to the reporters' galleries shall state in
1543 writing that they are not the agent or representative of any person or corporation interested in
1544 legislation before the General Court, and will not act as representative of any such person or
1545 corporation while retaining a place in the galleries; but nothing herein contained shall prevent
1546 such legislative reporter from engaging in other employment, provided such other employment is
1547 specifically approved by the committee on Rules and reported to the House.

1548 (f) All formal and informal sessions of the House of Representatives shall be open to both
1549 commercial and public radio and television, except designated times during such sessions, as
1550 determined by the House, reserved for the consideration of non-controversial business which

1551 does not give rise to debate. The manner and conditions of such broadcasts shall be established
1552 by the Speaker. Television, radio or web-broadcasts may be prohibited on any given day by the
1553 Speaker.

1554 All formal and informal sessions shall be broadcast live on House television and livestreamed
1555 on the General Court website. Audio or video recordings of prior formal and informal sessions
1556 for the current biennial session shall be made available to the public on the official website of the
1557 General Court.

1558 The Speaker may arrange for a limited number of remote connections at a location outside of
1559 the House Chamber for commercial and public radio and television to obtain audio and visual
1560 feeds of formal sessions being recorded or streamed by the House. Video or audio obtained from
1561 such feed shall be used only for reporting purposes. Access to the connections provided shall be
1562 on a first-come-first serve basis; provided, however, that commercial and public radio and
1563 television acquiring access shall be required to share the audio or video feeds with other any
1564 other commercial and public radio and television station seeking access. The manner and
1565 conditions of access shall be established by the Speaker with the approval of the House. Access
1566 may be prohibited by the Speaker with the approval of the House.

1567 Clauses (a) through (e) of this rule shall not be suspended unless by unanimous consent of the
1568 members present. [100.] (59.)

1569 [Amended April 18, 1979; Jan. 12, 1983; Jan. 12, 1987; Jan. 9, 1991; Jan. 26, 1999, Jan. 23,
1570 2007; Jan. 30, 2019; Jul. 7, 2021.]

1571 Quorum.

1572 82. Eighty-one members present shall constitute a quorum for the organization of the House
1573 and the transaction of business. [See amendments to the Constitution, Art. XXXIII.]

1574 In the event that a quorum is not present, the presiding officer shall compel the attendance of
1575 a quorum. During the absence of a quorum, no other business may be transacted or motions
1576 entertained except a declaration of adjournment or a recess by the Speaker. [105.]

1577 [Amended Jan. 12, 1981; Jan. 14, 1997.]

1578 Debate on Motions for Suspension of Rules.

1579 83. The question of suspension of House Rules 45, 47, 56, 61, 64, 66, 67, 68, 69, 77 and 83
1580 shall be decided without debate. Debate upon the motion for the suspension of any other House
1581 rule, unless otherwise indicated, or any joint rule shall be limited to fifteen minutes and no
1582 member shall occupy more than three minutes. This rule shall not be suspended unless by
1583 unanimous consent of the members present. [102.] (52.)

1584 [Amended Jan. 12, 1981; Jan. 9, 1989.]

1585 84. Unless otherwise indicated, nothing in the House rules or joint rules shall be suspended,
1586 altered or repealed unless two-thirds of the members present and voting consent thereto. This
1587 rule shall not be suspended unless by unanimous consent of the members present. [103.] (63.)

1588 [Amended Jan. 12, 1981.]

1589 84A. The Clerk may, due to technical limitations or upon exigent circumstances, elect to
1590 waive any requirement relative to the electronic availability and posting on the website of the
1591 General Court of any bills, resolves, summaries or other documents contained herein; provided,
1592 however, that if the Clerk so waives any such requirement he shall make paper copies of the

1593 documents available to all members and the public within the limitation established for the
1594 electronic availability and posting on the website of the General Court of any bills, resolves,
1595 summaries or other documents contained herein.

1596 [Adopted Feb. 11, 2009.]

1597 Reference to Committee on Rules.

1598 85. All motions or orders authorizing committees of the House to travel or to employ
1599 stenographers, all propositions involving special investigations by committees of the House, all
1600 resolutions presented for adoption by the House only, and all motions and orders except those
1601 which relate to the procedure of the House or are privileged in their nature or are authorized by
1602 Rule 65, shall be referred without debate to the committee on Rules, which shall report thereon,
1603 recommending what action should be taken. The committee shall not recommend suspension of
1604 Joint Rule 9, unless evidence satisfactory to the committee is produced that the petitioners have
1605 previously given notice, by public advertisement or otherwise, equivalent to that required by
1606 Chapter 3 of the General Laws. [104.] (13A.)

1607 [Amended Jan. 29, 2015; Feb. 1, 2023.]

1608 85A. (a) The committee on Operations, Facilities and Security, upon receipt of the
1609 recommendation of the state auditor pursuant to subsection (b), shall provide that an outside,
1610 independent financial audit of House financial accounts be conducted for each fiscal year upon
1611 receipt of the fiscal year end appropriation activity with balance report from the comptroller of
1612 the Commonwealth. The outside, independent financial audit shall be conducted in accordance
1613 with the standards for audits of governmental organizations, programs, activities and functions,
1614 commonly referred to as the “Generally Accepted Government Auditing Standards (GAGAS)”

1615 or “Yellow Book,” published by the Comptroller General of the United States. The committee on
1616 Operations, Facilities and Security, with the assistance of the House Business Manager, shall
1617 provide the independent auditor with requested financial documents for such financial audit. A
1618 copy of the completed outside, independent financial audit shall be filed with the Clerk of the
1619 House and the state auditor and shall be posted on the website of the General Court.

1620 (b) The committee on Operations, Facilities and Security shall annually request that the state
1621 auditor recommend a private, independent auditing firm to conduct the independent financial
1622 audit of House financial accounts required by subsection (a). The state auditor shall, within 30
1623 days of the committee’s request, recommend to the committee a private, independent auditing
1624 firm from the list of private, independent auditing firms on the appropriate statewide
1625 procurement contract established by the operational services division. The committee shall direct
1626 the House Business Manager to execute a contract with the private, independent auditing firm
1627 recommended by the state auditor pursuant to a statewide procurement contract established by
1628 the operational services division. If the state auditor fails to recommend a private, independent
1629 auditing firm to serve as the independent auditor of House financial accounts within 30 days of
1630 receiving a request from the committee, then the committee shall direct the House Business
1631 Manager to retain a private, independent auditing firm from the appropriate statewide
1632 procurement contract established by the operational services division.

1633 (c) The provisions of this rule shall apply to fiscal years beginning on July 1, 2025.

1634 [Adopted Jan. 11, 1985, Amended Jan. 20, 2011; Jan. 30, 2019.]

1635 Parliamentary Practice.

1636 86. The rules of parliamentary practice shall govern the House in all cases to which they are
1637 applicable, and in which they are not inconsistent with these rules or the joint rules of the two
1638 branches. (62.)

1639 Procurement.

1640 87. (a) All procurements for goods or services shall be completed by the House Business
1641 Manager under the oversight of the committee on Operations, Facilities and Security, subject to
1642 the provisions of this rule. The committee shall provide the House Business Manager with such
1643 guidelines, policies and procedures as the committee deems necessary and appropriate to ensure
1644 the effective and efficient procurement of goods and services under this rule.

1645 (b) (1) All procurements for goods or services shall, to the extent practicable, be made
1646 pursuant to a statewide procurement contract established by the operational services division.

1647 (2) Before procuring goods or services pursuant to a statewide procurement contract under
1648 this subsection in an amount of \$10,000 or more, and before completing any joint procurement
1649 under Joint Rule 36 on behalf of the House in an amount of \$10,000 or more, including a joint
1650 procurement not made pursuant to a statewide procurement contract, the House Business
1651 Manager shall transmit to all the members of the committee on Operations, Facilities and
1652 Security the House Business Manager's recommendation for awarding the procurement and a
1653 written summary identifying all steps taken by the House Business Manager for compliance with
1654 this rule, or with Joint Rule 36 as applicable, and any other information the House Business
1655 Manager deems necessary. The committee on Operations, Facilities and Security shall review the
1656 recommendation and summary to ensure compliance with this rule or Joint Rule 36, as
1657 applicable. Upon completion of the review by the committee on Operations, Facilities and

1658 Security, if a majority of the committee agrees with the House Business Manager's
1659 recommendation, the committee shall approve the recommendation in writing and the House
1660 Business Manager shall procure the goods or services.

1661 (c) (1) Upon written certification submitted to the chair of the committee on Operations,
1662 Facilities and Security by the House Business Manager that a necessary procurement under this
1663 rule cannot be made using a statewide procurement contract established by the operational
1664 services division, the House Business Manager may procure the required goods or services,
1665 subject to the provisions of this subsection.

1666 (2) For a procurement of goods or services in an amount of less than \$10,000, the House
1667 Business Manager shall use sound business practices.

1668 (3) For a procurement of goods or services in an amount of \$10,000 or more, but less than
1669 \$100,000, the House Business Manager shall seek written or oral quotations from no fewer than
1670 3 persons customarily providing such goods or services. The House Business Manager shall
1671 record the names and addresses of all persons from whom quotations were sought, the names and
1672 addresses of all persons submitting quotations and the date and amount of each quotation. The
1673 House Business Manager shall transmit all quotations received to the committee on Operations,
1674 Facilities and Security, along with the House Business Manager's recommendation as to what
1675 quotation offers the needed quality of goods or services at the best value for the House and a
1676 written summary identifying all steps taken by the House Business Manager for compliance with
1677 this rule and any other information the House Business Manager deems necessary. The
1678 committee on Operations, Facilities and Security shall review the quotations, the
1679 recommendation and the written summary to ensure compliance with this rule. Upon completion

1680 of the review by the committee on Operations, Facilities and Security, if the committee agrees
1681 with House Business Manager's recommendation, the committee shall approve the
1682 recommendation in writing and the House Business Manager shall award the contract to the
1683 responsible person whose quotation offers the needed quality of goods or services and which
1684 represents the best value for the House.

1685 (4) For a procurement of goods or services in an amount exceeding \$100,000, the House
1686 Business Manager shall seek proposals or quotations through a competitive bid process wherein
1687 the House Business Manager shall:

1688 (i) identify bidders capable and willing to provide the House with the best value of goods or
1689 services by: (A) posting public notice on the Commonwealth's electronic procurement system
1690 (COMMBUYS) of the House's request for proposals or quotations, which shall be approved by
1691 House Counsel and the committee on Operations, Facilities and Security prior to posting; and
1692 (B) whatever other means the House Business Manager deems appropriate;

1693 (ii) record the names of the responding bidders, the date of the response, a description of
1694 goods or services and the amount of each quotation;

1695 (iii) have the right, for any reason, and at any time prior to the execution of a contract, and
1696 without penalty, to notify bidders of a cancellation of procurement and the rejection of all bids
1697 and shall include such right of cancellation on the public posting;

1698 (iv) review each bid to confirm that it satisfies the requirements of the House's request;

1699 (v) determine, in consultation with the House office requesting the goods or services, which
1700 bid satisfying the requirements of the House's request also offers the needed quality of goods or
1701 services and represents the best value to the House;

1702 (vi) transmit to each member of the committee on Operations, Facilities and Security: (A) all
1703 bids submitted in response to the House's request; (B) the House Business Manager's
1704 determination pursuant to clause (v) as to which bid satisfying the requirements of the House's
1705 request also offers the needed quality of goods or services and represents the best value to the
1706 House; and (C) a written summary identifying all steps taken by the House Business Manager for
1707 compliance with this rule and any other information the House Business Manager deems
1708 necessary; and

1709 (vii) obtain the written approval of the committee on Operations, Facilities and Security
1710 before any bid is selected and any procurement is made pursuant to this paragraph.

1711 (d) Notwithstanding subsections (a) through (c), all procurements for legal services and legal
1712 resources shall be handled exclusively by Counsel in compliance with the provisions of this rule
1713 to the extent practicable.

1714 (e) The House Business Manager shall maintain a separate file on each procurement made
1715 under this rule and Joint Rule 36 and shall include in such file a copy of all documents
1716 constituting the agreement for goods and services and all documents evidencing compliance with
1717 this rule, including but not limited to any written approvals by the committee on Operations,
1718 Facilities and Security required under this rule.

1719 (f) For each contract not executed using a statewide procurement contract established by the
1720 operational services division and in excess of \$10,000, the House Business Manager shall make

1721 the file maintained pursuant to subsection (e) available for inspection within said office by
1722 members of the House for at least 3 years from the date of final payment under the contract;
1723 provided, however, that the House Business Manager, in consultation with Counsel, shall redact
1724 from said file any information which (i) is legally privileged; (ii) is proprietary; (iii) is related to
1725 individual members or House personnel; or (iv) is otherwise protected by state or federal law.

1726 (g) No member, officer or employee of the House shall execute a contract for the procurement
1727 of goods or services under this rule without the prior written approval of House Counsel.

1728 (h) On or before the 15th calendar day of each month, the House Business Manager shall
1729 transmit to the committee on Operations, Facilities and Security and House Counsel a written
1730 report identifying all procurements of goods or services, including procurements made pursuant
1731 to Joint Rule 36, made during the previous calendar month, regardless of the amount and
1732 whether the procurement was made pursuant to a statewide procurement contract.

1733 (i) Whenever the time required to comply with a requirement of this rule would endanger the
1734 health, safety or convenience of the members, staff or visitors to the House of Representatives,
1735 the House Business Manager, or House Counsel in the case of a procurement for legal consulting
1736 services and legal resources, may make an emergency procurement without satisfying the
1737 requirements of subsections (b), (c) and (d); provided, however, that both the House Business
1738 Manager, or House Counsel in the case of a procurement for legal consulting services and legal
1739 resources, and the chair of the committee on Operations, Facilities and Security certify in
1740 writing: (i) that an emergency exists and explain the nature thereof; (ii) that said emergency
1741 procurement is limited to only supplies or services necessary to meet the emergency; (iii) that
1742 said emergency procurement conforms to the requirements of this rule to the extent practicable

1743 under the circumstances; and (iv) each contractor's name, the amount and the type of each
1744 contract, the supplies or services provided under each contract, and (vii) the basis for
1745 determining the need for an emergency procurement. Such certification shall be filed with the
1746 Clerk of the House prior to an emergency procurement.

1747 [Adopted Jan. 20, 2011, Amended Jan. 23, 2013; Jan. 29, 2015; Feb. 19, 2015; Jan. 30, 2019;
1748 Jul. 7, 2021; Feb. 1, 2023.]

1749 Professional Standards and Conduct.

1750 88. (a) As used in Rules 88 to 100, inclusive, the following terms shall, unless the context
1751 clearly requires otherwise, have the following meanings:-

1752 "Authorized party", a party authorized to receive a complaint of harassment or retaliation
1753 pursuant to Rule 93.

1754 "Counsel", Legal Counsel to the House appointed pursuant to Rule 13B.

1755 "Director", the Director of Human Resources appointed pursuant to Rule 90.

1756 "Discriminatory harassment", verbal or physical conduct that:

1757 (1) demeans, stereotypes, or shows hostility or aversion toward an individual or group because
1758 of the individual's race, color, religion, national origin, sex, ancestry, sexual orientation, age,
1759 disability status, genetic information, gender identity, active military personnel status,
1760 transgender status or membership in any other protected class and;

1761 (2) (i) has the purpose or effect of creating an intimidating, hostile, humiliating or offensive
1762 working environment;

1763 (ii) has the purpose or effect of unreasonably interfering with a member, officer, intern or
1764 employee's work performance or official duties; or

1765 (iii) otherwise adversely affects a member, officer, intern or employee's employment
1766 opportunities or ability to fulfill their official duties or conduct business before the House.

1767 "EEO Officer", the outside, independent Equal Employment Opportunity Officer contracted
1768 by the House pursuant to Rule 89.

1769 "Harassment", discriminatory harassment or sexual harassment engaged in by a member,
1770 officer, intern or employee of the House or by a third party.

1771 "Sexual harassment", sexual advances, requests for sexual favors and verbal or physical
1772 conduct of a sexual nature when:

1773 (1) submission to or rejection of such advances, requests or conduct is made either explicitly or
1774 implicitly a term or condition of employment or as a basis for employment decisions, or as a
1775 term, condition or basis for the support of certain policy objectives, political aspirations or
1776 business before the House; or

1777 (2) such advances, requests or conduct have the purpose or effect of unreasonably interfering
1778 with a member, officer, intern or employee's work performance or official duties by creating an
1779 intimidating, hostile, humiliating or sexually offensive work environment.

1780 Under this definition, direct or implied requests for sexual favors in exchange for actual or
1781 promised (i) employment benefits such as favorable reviews, salary increases, promotions,
1782 increased benefits or continued employment or (ii) support for certain policy objectives, political
1783 aspirations or business before the House, shall constitute sexual harassment.

1784 The definition of sexual harassment is broad and may include other sexually oriented conduct,
1785 whether or not it is intended to violate this Rule, that is unwelcome and has the effect of creating
1786 a workplace environment that is hostile, offensive, intimidating or humiliating to a member,
1787 officer, intern or employee of the same or different gender, or those who do not identify as
1788 gender binary.

1789 “Supervisor”, a member, officer or employee having direct authority or oversight over one or
1790 more employees.

1791 “Third party”, any person visiting the House of Representatives, or conducting official
1792 business or work with any member, officer or employee of the House.

1793 (b) The House is committed to providing fair and equal opportunity for employment and
1794 advancement to all employees and applicants.

1795 It is the House’s policy and practice to assign, promote and compensate employees on the
1796 basis of qualifications, merit, and competence. Employment practices shall not be influenced nor
1797 affected by virtue of an applicant's or employee's race, color, religion, national origin, sex,
1798 ancestry, sexual orientation, age, disability status, genetic information, gender identity, active
1799 military personnel status, transgender status or membership in any other protected class.

1800 This policy governs all aspects of recruiting, hiring, training, on-the-job treatment, promotion,
1801 transfer, discharge and all other terms and conditions of employment.

1802 Without limiting the applicability of the foregoing, the House is committed to creating and
1803 maintaining a work environment in which all members, officers, interns and employees of the
1804 House, and all third parties, are treated with respect and free from any form of harassment,

1805 including harassment based on an individual's membership in any protected class. To that end,
1806 the House will not tolerate harassment of any kind by any member, officer, intern, employee or
1807 third party in the workplace or otherwise in connection with the official duties or employment
1808 responsibilities of a member, officer, third party, intern or employee. Any individual who
1809 believes that they may have been the object of harassment, or any individual who witnesses
1810 something they think may be harassment, is strongly encouraged to report that information to an
1811 authorized party.

1812 The House shall promote the safety and respectful treatment of all members, officers, interns
1813 and employees of the House, and all third parties, by establishing uniform procedures for making
1814 and receiving complaints of harassment and, in coordination with the EEO Officer, initiating,
1815 conducting and concluding investigations into complaints of harassment.

1816 A violation of this policy will subject the member, officer, employee or intern to discipline
1817 pursuant to Rule 95 and Rule 96.

1818 (c)(1) Discriminatory harassment may include, but is not limited to, the following conduct:

1819 (i) epithets, slurs, insults or negative stereotyping related to the protected classes;

1820 (ii) acts or jokes that are hostile or demeaning with regard to the protected classes;

1821 (iii) threatening, intimidating or hostile acts that relate to the protected classes;

1822 (iv) displays of written or graphic material that demean, ridicule or show hostility toward an
1823 individual or group because of membership in a protected class, including material circulated or
1824 displayed in the workplace, including District Offices, such as on an employee's desk or

1825 workspace, or on House equipment or bulletin boards, including but not limited to House-issued
1826 computers, laptops and personal device assistants;

1827 (v) verbal or non-verbal innuendo, and micro-aggressions; and

1828 (vi) other conduct that falls within the definition of discriminatory harassment set forth above.

1829 (2) Sexual harassment includes, but is not limited to, the following conduct:

1830 (i) gender-based bullying, including bullying based on transgender or non-gender binary status;

1831 (ii) attempts to coerce an unwilling person into a sexual relationship;

1832 (iii) repeatedly subjecting a person to unwelcome sexual or romantic attention;

1833 (iv) punishing a person's refusal to comply with a request for sexual conduct; and

1834 (v) conditioning a benefit on submitting to sexual advances.

1835 (3) Conduct that, if unwelcome, and depending upon the totality of the circumstances,
1836 including the severity of the conduct and its pervasiveness, may constitute sexual harassment
1837 includes, but is not limited to, the following:

1838 (i) unwelcome sexual advances, flirtations or propositions, whether they involve physical
1839 touching or not;

1840 (ii) sexual “kidding,” epithets, jokes, written or oral references to sexual conduct;

1841 (iii) gossip regarding one's sex life;

1842 (iv) comment on a person's body or an individual's sexual activity, deficiencies, or prowess;

- 1843 (v) displaying sexually suggestive objects, pictures, posters or cartoons;
- 1844 (vi) unwelcome leering or staring at a person;
- 1845 (vii) sexual gestures and suggestive or insulting sounds, such as whistling or comments with
1846 sexual content or meaning;
- 1847 (viii) uninvited physical contact, such as touching, hugging, purposely brushing against the
1848 body, patting or pinching;
- 1849 (ix) indecent exposure;
- 1850 (x) inquiries into one's sexual experiences;
- 1851 (xi) discussion of one's sexual activities;
- 1852 (xii) sexual emails; and
- 1853 (xiii) sexting, or sexual messages or images posted on social media, for example, texts, instant
1854 messages, Facebook posts, tweets, Snapchat, Instagram or blog entries.
- 1855 (d) No member, officer or employee of the House shall retaliate, including against a member,
1856 officer, intern, or employee of the House who has complained about harassment or participated
1857 in an investigation into an allegation of harassment or retaliation. Any person who believes that
1858 they may have been the subject of retaliation for having complained of harassment or retaliation,
1859 or for having participated in an investigation related to an allegation of harassment or retaliation,
1860 is strongly encouraged to report that information to an authorized party.
- 1861 [Added Mar. 15, 2018; Jan. 30, 2019; Feb. 1, 2023.]

89. (a) The House shall contract with an EEO Officer, who shall not be an employee of the General Court or any other Commonwealth entity or instrumentality. The committee on Human Resources and Employee Engagement shall contract with a qualified person or entity with expertise in conducting investigations to act as the EEO Officer pursuant to the procurement procedures in Rule 87. The contract shall contain such terms as are, in the judgment of the committee, necessary and appropriate to effectuate the goals of this Rule and related provisions of Rules 93 to 100, inclusive.

(b) The EEO Officer shall review and investigate complaints deemed plausible pursuant to Rule 94 alleging a violation of Rule 88, the House Anti-Harassment Policy, or the House Equal Employment Policy, including, but not limited to complaints alleging harassment or retaliation. Complaints shall be received, reviewed and investigated pursuant to Rules 93 to 97, inclusive.

[Adopted Mar. 15, 2018; Amended Jul. 7, 2021.]

90. (a) The House shall employ a full-time Director of Human Resources. The committee on Human Resources and Employee Engagement shall appoint a qualified person to act as the Director at such compensation as the committee on Rules shall approve.

The Director shall serve a term of two years from the date of appointment, unless the Director sooner resigns, retires or is removed; provided, however, that the Director may only be removed: (i) for misfeasance, malfeasance or nonfeasance, as determined by Counsel and approved by a majority vote of the committee on Human Resources and Employee Engagement ; or (ii) by a majority roll call vote of the House.

(b) The Director may employ such assistants as may be necessary in the discharge of the Director's duties, subject to the approval of the committee on Human Resources and Employee

1884 Engagement, and may expend with like approval such sums as may be necessary for the
1885 discharge of their duties.

1886 (c) The Director shall develop and oversee standardized practices and procedures, which shall
1887 apply to all applications for employment. The practices and procedures shall include, but shall
1888 not be limited to: (i) a standard application for employment; (ii) mandatory background and
1889 reference checks, the results of which shall be reported by the Director to the applicant's
1890 prospective appointing authority; and (iii) a standard offer letter for each position within the
1891 House.

1892 (d) The Director shall develop and oversee standardized practices and procedures, which shall
1893 apply to all employees and appointed officers of the House. These practices and procedures shall
1894 include or address, without limitation: (i) regular meetings between the Director and employees
1895 who are supervisors, including an initial meeting within 14 days of the employee assuming such
1896 a role; (ii) guidelines for conducting employee performance reviews; (iii) a program of
1897 progressive discipline; and (iv) separations from employment including exit interviews for
1898 terminated employees.

1899 (e) The Director and the Director of Employee Engagement, in consultation with Counsel,
1900 shall develop employee classifications, which shall include written job descriptions, salary
1901 ranges and schedules. The classifications shall be published in the employee and supervisor
1902 handbooks. The Director may develop a seniority system on which employee salaries may be
1903 based. A seniority system shall be published in the employee handbook.

1904 (f) The Director, in consultation with the Director of Employee Engagement and Counsel,
1905 shall develop practices and procedures for receiving, investigating and resolving personnel

1906 complaints unrelated to Rule 88, the House Anti-Harassment Policy, or the House Equal
1907 Employment Policy.

1908 (g) The Director, in consultation with the Director of Employee Engagement and subject to
1909 the approval of Counsel, shall develop and implement written policies and procedures for
1910 receiving and maintaining records of complaints against members, officers, interns or employees
1911 of the House, or against third parties, made in accordance with Rules 93 to 98, inclusive.

1912 (h) The Director shall annually publish: (i) an Employee Handbook; and (ii) an Intern
1913 Handbook. Each handbook shall be developed with the advice and approval of Counsel, and
1914 shall be submitted to the committee on Human Resources and Employee Engagement for review
1915 and approval at least 14 days prior to publication.

1916 The handbooks shall be available as follows:

1917 (i) the Director shall post both handbooks on the human resources web portal;

1918 (ii) the Director shall email an electronic copy of the Employee Handbook to each employee
1919 within 10 days of its publication and require that each employee sign a written acknowledgement
1920 of receipt and return such acknowledgement to the Director within 5 days;

1921 (iii) the Director shall email an electronic copy of the Employee Handbook to each new
1922 employee within 5 days of the employee's start date and require that the employee sign a written
1923 acknowledgement of receipt and return such acknowledgement to the Director within 5 days;

1924 (iv) the committee on Human Resources and Employee Engagement shall provide an Intern
1925 Handbook to each intern on the first day of their internship. Upon receipt of the Intern Handbook

1926 the intern shall sign a written acknowledgement of receipt that day, which shall be maintained by
1927 the committee, with a copy sent to the Director;

1928 (vi) hard copies of each handbook shall be available in the offices of the Director, the Director
1929 of Employee Engagement, Counsel and the Clerk;

1930 (vi) the Director shall cause electronic copies of each handbook to be downloaded onto the
1931 desktop of each House computer; and

1932 (vii) in formats accessible to all members, officers and employees.

1933 (i)(1) The committee on Human Resources and Employee Engagement, in consultation with
1934 the Director, shall develop policies to address individuals who provide services to the House in a
1935 volunteer capacity or otherwise without receiving compensation

1936 (2) The committee on Human Resources and Employee Engagement, in consultation with the
1937 Director and subject to the approval of Counsel, shall develop policies to address pro-bono
1938 service and charitable and community service activities by members, officers and employees of
1939 the House.

1940 [Added Mar. 15. 2018; Amended Jan. 30, 2019; Jul. 7, 2021.]

1941 91. The Director shall, in consultation with the Director of Employee Engagement, create and
1942 maintain an internal web portal for members, officers and employees. The web portal shall
1943 provide relevant information on human resource policies and procedures, including, without
1944 limitation, the Rules of the House, each handbook published by the Director, explanations of
1945 complaint and investigation procedures, contact information for the Director, the Director of

1946 Employee Engagement, and Counsel, training opportunities and schedules and the directory of
1947 committee staff required pursuant to Rule 92.

1948 [Added Mar. 15, 2018; Amended Jul. 7, 2021; Feb. 1, 2023.]

1949 92. (a) The House shall employ a full-time Director of Employee Engagement. The
1950 committee on Human Resources and Employee Engagement shall appoint a qualified person to
1951 act as the Director of Employee Engagement at such compensation as the committee on Human
1952 Resources and Employee Engagement shall approve.

1953 (b) The Director of Employee Engagement shall, in consultation with the Director of Human
1954 Resources: (i) develop methods for enhancing the skills and professional development of
1955 employees including skills for providing constituent services and engaging with, and ensuring
1956 the privacy of, members of the public who visit the State House; (ii) explore and develop
1957 partnerships with national trade organizations to maximize the opportunities for professional
1958 development available to employees; and (iv) engage employees in roundtable discussions on
1959 issues of importance or concern.

1960 (c) The Director of Employee Engagement shall assist the committee on Human Resources
1961 and Employee Engagement with duties as may be assigned by the committee or the Director of
1962 Human Resources.

1963 (d) The Director of Employee Engagement shall prepare and publish on the house intranet a
1964 directory of committee staff.

1965 (e)(1) The Director of Employee Engagement, in conjunction with the committee on Human
1966 Resources and Employee Engagement and Counsel, shall provide for training of members.

1967 Training shall include, without limitation, instruction on: (i) House equal employment policies,
1968 including the complaint and investigation process; (ii) workplace harassment specifically,
1969 including techniques for bystander intervention and other best practices; (iii) prohibition on
1970 retaliation; (iv) best management practices; (v) professionalism and respect; and (vi) practices for
1971 monitoring the workplace for issues and identifying risk factors. Each member shall make a
1972 signed, written acknowledgement of the member's completion of the training, which shall be
1973 maintained in the Director's records.

1974 (2) The Director of Employee Engagement, in conjunction with the committee on Human
1975 Resources and Employee Engagement and Counsel, shall provide for annual training for all
1976 appointed officers and employees. Training shall include, without limitation, instruction on (i)
1977 House equal employment policies, including the complaint and investigation process; (ii)
1978 workplace harassment specifically, including techniques for bystander intervention and other
1979 best practices; (iii) prohibition on retaliation; and (iv) professionalism and respect.

1980 Separate trainings shall be held for those appointed officers and employees who are
1981 supervisors and those appointed officers and employees who are not supervisors. The content of
1982 the training shall be tailored appropriately to the recipients. Supervisors shall be specifically
1983 trained on best management practices.

1984 Each appointed officer and employee shall make a signed, written acknowledgement of their
1985 completion of the training, who shall provide a copy to the Director to be maintained in their
1986 personnel file.

1987 (3) The Director of Employee Engagement shall provide for appropriate additional training to
1988 members, officers or employees at any time that the Director of Employee Engagement deems
1989 necessary or appropriate, including upon the request of a member, officer or employee.

1990 (4) The Director of Employee Engagement shall provide for training for interns during the
1991 intern orientation process. The training shall include without limitation, instruction on: (i) House
1992 equal employment policies, including the complaint and investigation process; (ii) workplace
1993 harassment specifically, including techniques for bystander intervention and other best practices;
1994 (iii) prohibition on retaliation; and (iv) professionalism and respect. Each intern shall make a
1995 signed, written acknowledgement of the intern's completion of the training, which shall be
1996 retained by the Director to be maintained in the Director's records.

1997 [Added Mar. 15, 2018; Amended Jul. 7, 2021.]

1998 93.(a)(1) A member who believes that they have been the object of harassment or retaliation,
1999 who witnesses harassment or retaliation, or who becomes aware of harassment or retaliation may
2000 make a complaint, either orally or in writing with the Director, the Director of Employee
2001 Engagement or Counsel. Upon receipt of a complaint pursuant to this subsection, a recipient
2002 other than the Director shall forthwith provide a detailed account of the complaint to the Director
2003 for assessment pursuant to Rule 94.

2004 (2) An appointed officer, employee or intern of the House who believes that they have been
2005 the object of harassment or retaliation, who witnesses harassment or retaliation, or who becomes
2006 aware of harassment or retaliation may make a complaint, either orally or in writing, to any of
2007 the officer's, employee's or intern's supervisors, the Director, the Director of Employee
2008 Engagement or Counsel. Upon receipt of a complaint pursuant to this subsection, a recipient

2009 other than the Director shall forthwith provide a detailed account of the complaint to the Director
2010 for assessment pursuant to Rule 94.

2011 (3) A third party who believes that they have been the object of harassment, or who witnesses
2012 harassment or retaliation may make a complaint, either orally or in writing, with the Director.
2013 Upon receipt of a complaint pursuant to this subsection, the Director shall assess the complaint
2014 pursuant to Rule 94.

2015 (b) The Director, in consultation with the Director of Employee Engagement and subject to
2016 the approval of Counsel, shall provide guidance for authorized parties who may receive
2017 complaints under subsection (a), both in the form of the training referenced in Rule 92 and
2018 otherwise. The guidance shall instruct authorized parties on the proper way to receive complaints
2019 and to advise complainants on issues including, but not limited to, confidentiality, prohibition on
2020 retaliation and the availability of additional resources and avenues for action for the complainant,
2021 including possible criminal action where appropriate.

2022 (c) If a complaint made pursuant to subsection (a) is against the Director or EEO Officer, the
2023 recipient of the complaint shall notify Counsel, rather than the Director, and Counsel shall then:
2024 (i) refer the matter to the EEO Officer for investigation if the complaint is against the Director;
2025 or (2) investigate the complaint pursuant to Rules 94 to 96, inclusive, if the complaint is against
2026 the EEO Officer.

2027 (d) If, based on the nature and circumstances of the complaint, the EEO Officer believes that
2028 they cannot objectively assess or investigate a complaint referred to them pursuant to Rule 94,
2029 the EEO Officer shall immediately notify Counsel, who shall refer the complaint to outside

2030 counsel for investigation. Counsel shall provide the EEO Officer with guidelines used to identify
2031 matters that should be referred to Counsel or outside counsel pursuant to this subsection.

2032 [Added Mar. 15, 2018; Amended Jan. 30, 2019.]

2033 94. (a)(1) All complaints alleging harassment or retaliation by or against a member, officer,
2034 intern or employee of the House, or by or against a third party, received by any member, officer
2035 or employee of the House, shall be immediately referred to the Director for initial assessment.

2036 (2) Upon receiving a complaint alleging harassment or retaliation by or against a member,
2037 officer, intern or employee of the House, or by or against a third party, the Director shall
2038 promptly undertake an initial assessment to determine whether the complaint is plausible and
2039 requires investigation. Such assessment shall be completed within two weeks from the date of
2040 receiving a complaint.

2041 Upon a determination by the Director that a complaint is plausible and requires investigation,
2042 the Director shall notify Counsel that a complaint is being referred to the EEO Officer and shall
2043 then submit the complaint along with the Director's initial assessment to the EEO Officer so that
2044 the EEO Officer may commence an investigation of the complaint.

2045 (3) Upon a determination by the Director that a complaint is not plausible and does not
2046 require investigation, the Director shall submit a report to Counsel describing the complaint and
2047 the Director's basis for determining that the complaint lacked plausibility and did not require
2048 investigation. If Counsel objects to the Director's determination, the Director shall then submit
2049 the complaint to the EEO Officer so that the EEO Officer may commence an investigation of the
2050 complaint.

(4) Upon receiving a complaint submitted pursuant to (2), the EEO Officer shall confirm the Director's assessment that the Complaint is plausible. If the EEO Officer confirms that the complaint is plausible, the EEO Officer will then commence an investigation. If the EEO Officer assesses that the Complaint is not plausible, notwithstanding the Director's initial assessment, then the EEO Officer shall so notify Counsel. Counsel shall then review the complaint and the basis for both the Director's initial assessment and the EEO Officer's contrary assessment and shall determine whether or not the EEO Officer shall proceed with an investigation.

(b) The EEO Officer shall conduct investigations pursuant to written policies and procedures, which shall be established by the EEO Officer pursuant to Rule 98, as well as established best practices. The policies and procedures shall ensure that all investigations and reports are confidential to the fullest extent practicable under the circumstances and shall reflect well-established industry best practices for EEO-related investigations.

(c) The EEO Officer shall complete investigations within 90 days; provided, that the EEO Officer may extend the investigation in extraordinary circumstances. The EEO Officer shall regularly, but no less frequently than every 2 weeks, update the complainant on the status of the investigation. If the EEO Officer believes that interim measures are warranted to protect complainants during the investigation, then the EEO shall recommend such measures to Counsel, who shall work with the appropriate supervisory individual or body to implement such interim measures as necessary and appropriate.

(d) Upon the conclusion of an investigation, the EEO Officer shall prepare a report summarizing the complaint, the EEO Officer's investigation, findings and recommendations, if any, for disciplinary, remedial or preventative action, or any combination thereof. The EEO

2073 Officer shall submit this report to Counsel, who shall share the conclusions of the report with the
2074 appropriate supervisory individual or body as necessary and appropriate, and in such a manner to
2075 maintain confidentiality regarding the information in the report to the greatest extent practicable.

2076 [Added Mar. 15, 2018.]

2077 95. (a) (1) If after completion of an investigation pursuant to Rule 94, the EEO Officer
2078 determines that a member has violated Rule 88, the EEO Officer shall recommend disciplinary,
2079 remedial or preventative action, or any combination thereof, as is appropriate and proportional
2080 under the circumstances, subject to the limitations set forth in paragraphs (2) and (3).

2081 (2) Where the EEO Officer's action recommended pursuant to paragraph (1) does not include
2082 reprimand, censure, removal from position as a chair or other position of authority, or expulsion,
2083 the EEO Officer shall notify Counsel and the member of the recommended action and provide
2084 the member with a copy of the EEO Officer's report. The member may, within 10 days of
2085 receiving notice, request in writing that the Speaker and Minority Leader appoint a special
2086 committee pursuant to Rule 96 to review the findings and recommendations of the EEO Officer.

2087 Upon receipt of said request, the Speaker and Minority Leader shall convene a special
2088 committee pursuant to Rule 96.

2089 If the member fails to request the appointment of a special committee pursuant to Rule 96
2090 within 10 days, then Counsel shall determine the parties who must be informed to implement the
2091 recommended action, including but not limited to the Speaker and/or the Minority Leader, and
2092 those parties shall implement the recommended action.

2093 (3) If the action recommended pursuant to subsection (a) includes reprimand, censure,
2094 removal from position as a chair or other position of authority, or expulsion, the EEO Officer
2095 shall submit, through Counsel, a request that the Speaker and Minority Leader convene a special
2096 committee pursuant to Rule 96 to review the findings and recommendations of the EEO Officer.
2097 Upon receipt of said request from the EEO Officer, the Speaker and Minority Leader shall
2098 appoint a special committee pursuant to Rule 96.

2099 (4) Upon the request for a special committee made by the EEO Officer or a member pursuant
2100 to this subsection, the EEO Officer shall provide the Speaker and Minority Leader with a copy of
2101 the EEO Officer's report.

2102 (b) (1) If after completion of an investigation pursuant to Rule 94 the EEO Officer concludes
2103 that an appointed officer, intern or employee has violated Rule 88, the EEO Officer shall notify
2104 Counsel, who shall then notify the appointing authority for the appointed officer, intern or
2105 employee and recommend the implementation of remedial, preventative or disciplinary action, or
2106 any combination thereof, as is appropriate and proportional under the circumstances, subject to
2107 the limitations set forth in paragraph (2). Notwithstanding Rule 97, the appointing authority may
2108 inform any other supervisors of the appointed officer, intern or employee of the remedial,
2109 preventative or disciplinary action if the appointing authority believes that sharing such
2110 information is necessary for maintaining proper supervision of the appointed officer, intern or
2111 employee.

2112 (2) If after completion of an investigation pursuant to Rule 94 the EEO Officer concludes
2113 that an appointed officer, intern or employee has violated Rule 88 and the EEO Officer's action
2114 recommended pursuant to paragraph (1) includes termination of employment or internship, the

2115 EEO Officer shall forward the recommendation along with the report, with all supporting
2116 documentation, to Counsel for review and approval. Counsel shall have two business days to
2117 review the EEO Officer's recommendation. If Counsel approves the recommendation, Counsel
2118 shall forward the recommendation and report to the chair of the committee on Human Resources
2119 and Employee Engagement for approval. If the chair approves, Counsel shall then notify the
2120 Speaker, the appointing authority, and the Director, and the Director shall immediately terminate
2121 the individual's employment or internship. If Counsel rejects the EEO Officer's
2122 recommendation, or if the chair does not approve the recommendation after Counsel has
2123 approved, then Counsel shall notify the Speaker and the Speaker shall determine the action to be
2124 implemented.

2125 [Added Mar. 15, 2018.]

2126 96. (a) Upon receipt of a request pursuant to Rule 95, the Speaker and Minority Leader shall
2127 confidentially convene a Special Committee on Professional Conduct, which shall consist of 7
2128 members, 5 of whom shall be appointed by the Speaker and 2 of whom shall be appointed by the
2129 Minority Leader. To the extent practicable, membership on the special committee shall be
2130 apportioned in a way that takes into account the nature of the complaint and the commitment of
2131 the House to providing fair and equal opportunity in employment. The Speaker shall appoint a
2132 member to serve as chair. No member who has declared their candidacy for any other local, state
2133 or federal office shall be appointed to a special committee. Upon appointment of members to the
2134 committee, the Speaker and Minority Leader shall notify Counsel, the EEO Officer, and the
2135 member who is the subject of the complaint of the identity of the members appointed. The
2136 existence of the committee and the identity of the members appointed to the committee shall
2137 otherwise remain confidential.

2138 (b) The EEO Officer shall provide the members of the special committee with all records
2139 relevant to the investigation. The special committee shall review all records provided to them
2140 and may further investigate, to the extent that it is necessary to resolve the complaint. The special
2141 committee may summon witnesses, administer oaths, take testimony and compel the production
2142 of books, papers, documents and other evidence in connection with its review.

2143 (c) In the case of a special committee convened under this section upon the request for a
2144 review by a member pursuant to paragraph (2) of subsection (a) of Rule 95, the committee shall
2145 determine whether the EEO Officer's intended action is proportional and appropriate under the
2146 circumstances. If a majority of the committee so finds, it shall order that the action recommended
2147 by the EEO Officer be implemented, along with any additional disciplinary, remedial or
2148 preventative action, or any combination thereof, the committee determines to be proportional and
2149 appropriate under the circumstances, subject to the limitations set forth in subsection (d). If a
2150 majority of the committee finds that the intended action was not proportional or appropriate
2151 under the circumstances, it may make a new recommendation for disciplinary, remedial or
2152 preventative action, or any combination thereof, subject to the limitations set forth in said
2153 subsection (d). All determinations of the committee pursuant to this subsection shall be final.

2154 (d) (1) If a majority of the committee finds that a member has violated Rule 88, it may take
2155 any disciplinary, remedial or preventative action, or any combination thereof, as it determines to
2156 be proportional and appropriate under the circumstances; provided, however, that if the
2157 committee determines that reprimand, censure, removal from position as a chair or other position
2158 of authority, or expulsion is proportional and appropriate under the circumstances, it shall file a
2159 report with the Clerk recommending that the House vote to implement the disciplinary action.

2160 (2) Upon the filing of a report pursuant to paragraph (1), the Clerk shall promptly: (i) make
2161 the report available to all members electronically; (ii) cause the report to be posted on the
2162 website of the General Court; and (iii) place the matter in first position in the Orders of the Day
2163 for the next calendar day that the House is meeting; provided, however, that no business shall be
2164 conducted on that calendar day or any day thereafter until the question of acceptance or rejection
2165 of the special committee's recommendation for discipline is decided by a majority of the
2166 members present and voting by a recorded roll call vote. If a majority of the members vote to
2167 accept the recommendation for discipline, the member shall be disciplined in the manner so
2168 recommended. Unless a majority of the members vote to accept the report, the member shall not
2169 be disciplined.

2170 (3) All findings and determinations of the committee, including instances where the special
2171 committee does not file a report with the Clerk pursuant to paragraph (1), shall be reported to
2172 Counsel and the EEO Officer and shall be final. The EEO Officer shall maintain confidential
2173 records of such findings and determinations, except that a report filed pursuant to paragraph (1)
2174 shall be public.

2175 (e) The committee may consult with Counsel, the EEO Officer or the Director in discharging
2176 its duties pursuant to Rules 88 to 97, inclusive.

2177 [Added Mar. 15, 2018; Amended Jan. 30, 2019.]

2178 97. (a) Any information obtained by a member or employee in their official capacity and
2179 relating to a complaint or investigation of harassment pursuant to Rules 93 to 96, inclusive, and
2180 any records of such information shall be confidential to the fullest extent possible.

2181 Confidentiality shall be specifically subject to subsections (b), (c), (d) and (e); provided that

2182 nothing in this Rule shall prevent the EEO Officer or Counsel from sharing information
2183 regarding a complaint or investigation, including but not limited to the report prepared by the
2184 EEO Officer, to effectuate the requirements of Rules 88 through 97, inclusive.

2185 (b) The EEO Officer, in reviewing a complaint and conducting an investigation, shall keep
2186 the complaint confidential and shall not disclose the identity of the complainant or the person
2187 against whom the complaint is made or any other details of the complaint with any member or
2188 employee; provided, however, that the EEO Officer may share information to the extent
2189 necessary to interview witnesses or parties to the investigation, or to consult with Counsel if the
2190 EEO Officer determines that such consultation is necessary or appropriate in connection with the
2191 investigation.

2192 (c) (1) The establishment of a special committee pursuant to Rule 96 shall be completely
2193 confidential, except as set forth in Rule 96.

2194 (2) All proceedings of a special committee convened pursuant to Rule 96 shall be confidential
2195 and members of the committee shall not share any information about the complaint and
2196 investigation for which the committee was convened with any other member or employee,
2197 including their own appointed staff; provided, however, that the committee may consult with
2198 Counsel or the EEO Officer if the chair of the committee determines that such consultation is
2199 required in connection with the investigation.

2200 (3) A special committee convened pursuant to Rule 96 shall implement all actions short of
2201 reprimand, censure, removal from position as a chair or other position of authority, or expulsion
2202 of a member confidentially, except that the special committee shall submit a final report to the
2203 and may consult with Counsel if the chair of the committee determines that such consultation is

2204 required in connection with their recommended action. The committee's recommendation, if any,
2205 for reprimand, censure, removal from position as a chair or other position of authority, or
2206 expulsion of a member, shall be a public document; provided, however, that the committee may
2207 use pseudonyms to conceal the identity of the complainant if the circumstances of the complaint
2208 so warrant.

2209 (d) All authorized parties shall keep complaints confidential, except to share the complaint
2210 with the Director, Counsel and EEO Officer as set forth in these Rules.

2211 (e) Nothing in this Rule shall limit the ability of the EEO Officer to share information with a
2212 complainant, to the extent appropriate, in order to properly conclude the complaint or
2213 investigation process.

2214 [Added Mar. 15, 2018; Amended Jan. 30, 2019.]

2215 98. The EEO Officer and the Director shall establish all policies, procedures and guidelines
2216 required by Rules 88 to 97, inclusive, and may develop supplemental policies, procedures and
2217 guidelines necessary to implement or enforce Rules 88 to 97, inclusive; provided, that no policy,
2218 procedure or guideline shall take effect without the prior review and written approval of Counsel
2219 and the committee on Human Resources and Employee Engagement. Where appropriate, these
2220 policies, procedures and guidelines shall be included in the handbooks.

2221 The EEO Officer and the Director may consult with each other, Counsel, and the committee
2222 on Human Resources and Employee Engagement to carry out the requirements of Rules 88 to 97,
2223 inclusive.

2224 [Added Mar. 15, 2018; Amended Jul. 7, 2021.]

2225 99. [Added March 15, 2018; Amended Jul. 7, 2021; Omitted.]

2226 100. (a) No member, officer, intern or employee shall execute any agreement to settle any
2227 legal claim or potential legal claim by any current or former member, officer, intern or employee
2228 unless said agreement is executed pursuant to this rule.

2229 (b) No member, officer, intern or employee shall execute any agreement to settle any legal
2230 claim or potential legal claim brought by any current or former member, officer, intern or
2231 employee without the approval of Counsel. Counsel shall independently review the claim or
2232 potential legal claim brought by any current or former member, officer, intern or employee and
2233 confirm that the claim or potential claim does not relate to sexual harassment or retaliation based
2234 on a claim of sexual harassment. Counsel shall not approve any settlement of a legal claim or
2235 potential legal claim brought by any current or former member, officer, intern or employee
2236 pursuant to this subsection if Counsel reasonably believes such legal claim or potential legal
2237 claim relates to sexual harassment or retaliation based on a claim of sexual harassment.

2238 (c) No member, officer, intern or employee shall execute any agreement to settle any legal
2239 claim or potential legal claim of sexual harassment, or retaliation based on a legal claim or
2240 potential legal claim of sexual harassment, by any current or former member, officer, intern or
2241 employee unless said agreement is executed pursuant to this subsection.

2242 No member, officer, intern or employee shall execute any agreement to settle a legal claim or
2243 potential legal claim of sexual harassment, or retaliation based on a legal claim or potential legal
2244 claim of sexual harassment, by any current or former member, officer, intern or employee unless:

2245 1. the request to negotiate said agreement was initiated, in writing, by the person filing or
2246 eligible to file the legal claim or potential legal claim or a person legally authorized to represent
2247 that person;

2248 2. the person filing the legal claim or eligible to file the legal claim is given 15 days to review
2249 and consider the agreement;

2250 3. the duration of any non-disclosure or non-disparagement provision of the agreement to
2251 settle the legal claim or potential legal claim is for a finite period of time as agreed to by the
2252 parties;

2253 4. the agreement to settle the legal claim or potential legal claim specifically provides that no
2254 provision of the agreement, including any non-disclosure or non-disparagement provision of the
2255 agreement, shall preclude any party from participating in an investigation by Counsel, the
2256 Director, the EEO Officer, a Special Committee on Professional Conduct or any law
2257 enforcement agency; and

2258 5. the agreement is approved in writing by Counsel.

2259 (d) In the case of an agreement to settle any legal claim or potential legal claim of sexual
2260 harassment pursuant to this Rule by a member, the Speaker and Minority Leader shall appoint a
2261 Special Committee on Professional Conduct pursuant to Rule 96 to determine if the member
2262 shall be required to personally reimburse the House for all or part of the settlement amount.
2263 Upon a determination by the Special Committee that the member shall be required to personally
2264 reimburse the House for all or part of the settlement amount, it shall determine the amount to be
2265 reimbursed and immediately notify the member of that amount.

2266 (e) Upon request of the party described in paragraph numbered 1 above or the complainant,
2267 Counsel shall waive any non-disclosure or non-disparagement provision of any agreement
2268 executed prior to the effective date of this Rule by the House and any current or former member,
2269 officer, intern or employee, to allow said current or former member, officer, intern or employee
2270 to report or discuss a claim of sexual harassment or retaliation based on sexual harassment.

2271 [Added Mar. 15, 2018; Amended Jan. 30, 2019; Jul. 7, 2021.]

2272 101. Notwithstanding Rule 7C, the Speaker may, upon recommendation of a majority of the
2273 committee on Rules, activate remote rules for the operation of the House of Representatives as
2274 provided within this rule:

2275 Remote Rules for the Operation of the House of Representatives

2276 Remote Rule 1. As used in Remote Rules 1 through 16, inclusive, the following terms shall
2277 have the following meanings:-

2278 “Clerk”, the Clerk of the House of Representatives.

2279 “Formal session”, a formal session of the House.

2280 “House”, the House of Representatives.

2281 “House Chamber”, the House Chamber within the Massachusetts State House in Boston or
2282 the location to which the House at its previous formal or informal session adjourned to meet.

2283 “Member”, a member of the House of Representatives.

2284 “Monitor”, one of the members appointed by the Speaker pursuant to Standing Rule 8.

2285 “Participating remotely” or “remotely present”, participating by telephone, teleconference,
2286 video conference or other means.

2287 “Present”, a member either physically present in the House Chamber for a formal session or
2288 remotely present, and participating in a formal session.

2289 “Quorum”, eighty-one members present for a formal session.

2290 “Speaker”, the Speaker of the House or the member presiding at the formal session of the
2291 House after being appointed by the Speaker to perform the duties of the Chair pursuant to
2292 Standing Rule 5.

2293 “Standing rules”, House Rules 1 through 100, inclusive.

2294 Remote Rule 2. (a)(1) The House may assemble in a formal session with members
2295 participating remotely. Members participating remotely in a formal session may vote on any
2296 question or other matter before the House. Members participating remotely in a formal session
2297 shall be considered present and in attendance at the formal session for all purposes, including for
2298 purposes of determining a quorum pursuant to Article XXXIII of the Amendments to the
2299 Constitution of the Commonwealth or any standing rules and for purposes of appearing before
2300 the Governor and council pursuant to Part the Second, Chapter VI, Article I of the Constitution
2301 of the Commonwealth.

2302 (2) A member participating remotely in a formal session shall have the same privileges, rights
2303 and responsibilities as if the member were physically present in the House Chamber, including
2304 without limitation, the right, privilege and responsibility to cast votes on all questions or other

2305 matters brought to a vote and the ability to take the oath required pursuant to Part the Second,
2306 Chapter VI, Article I of the Constitution of the Commonwealth.

2307 (3) At the commencement of a formal session, the Speaker shall take the Chair at the hour to
2308 which the House stands adjourned, call the House to order and immediately order a quorum roll
2309 call.

2310 (4)(i) The House shall not be called to order before the hour of 10:00 A.M. nor meet beyond
2311 the hour of midnight unless by unanimous consent of the members present.

2312 (ii) All votes taken on the enactment of any bill or resolve during any formal session where
2313 members are participating remotely shall be by roll call vote.

2314 (5) The Clerk shall prepare a Journal for the House for any formal session of the House held
2315 remotely. The Journal for the House may reflect that the formal session was convened pursuant
2316 to remote rules, but shall not deviate in any substantive manner from the Journal of the House
2317 required to be prepared by the Clerk pursuant to Standing Rule 10. The Journal of the House for
2318 any formal session of the House held during the state of emergency within the House shall not
2319 specify which members participated remotely.

2320 (b)(1) The Speaker shall preside from within the House Chamber over any formal session of
2321 the House where any member is participating remotely. The Minority Leader, Chair of the
2322 committee on Ways and Means, Ranking Minority Member of the committee on Ways and
2323 Means, the House Chair and Ranking Minority Member of the joint committee from which any
2324 bill being debated at the formal session has been reported, or their designees, and the division
2325 monitors may also be physically present. All other members are strongly encouraged to
2326 participate remotely in a formal session.

2327 (2) Officers and employees essential to the conduct of the formal session may be present in
2328 the House Chamber during a formal session with the express authorization of the Speaker in
2329 consultation with the Minority Leader. The Speaker and Minority Leader may have two
2330 employees from their office present in the House Chamber during a formal session. No other
2331 officer or employee shall be physically present in the House Chamber unless deemed essential to
2332 the conduct of the formal session by the Speaker. [Amended Feb. 1, 2023.]

2333 (3) All members, officers and employees physically present in the House Chamber during a
2334 formal session shall, at the direction of the Speaker, undertake any mitigation measures ordered
2335 by the Speaker. Court Officers shall strictly enforce mitigation measures directed by the Speaker
2336 by and between members, officers and employees in and around the House Chamber. Any
2337 member, officer or employee in violation of the mitigation measures ordered by the Speaker
2338 shall be removed from the House Chamber.

2339 Remote Rule 3. (a) A member participating remotely may make any motion authorized
2340 pursuant to the standing rules, raise a point of order, raise a point of personal privilege, or raise a
2341 point of parliamentary inquiry. Members participating remotely shall notify their division
2342 monitor of their desire to make a motion, raise a point of order, raise a point of personal privilege
2343 or raise a point of parliamentary inquiry. The division monitor shall immediately notify the
2344 Speaker who shall recognize the member seeking to make a motion, raise a point of order, raise a
2345 point of personal privilege or raise a point of parliamentary inquiry. No member shall interrupt
2346 another member while that member is speaking, including to request that the member speaking
2347 yield, except for the reasons authorized herein.

2348 (b) A vote on any motion made pursuant to subsection (a) shall be conducted by voice vote as
2349 prescribed by subsection (b) of Remote Rule 5, unless the Constitution or the standing rules
2350 specifically require a roll call vote.

2351 (c) A motion made by a member participating remotely may be made and submitted by the
2352 division monitor for the floor division of the House wherein the seat assigned to said member
2353 pursuant to Standing Rule 79 is located.

2354 Remote Rule 4. (a) A member participating remotely wishing to speak on any question before
2355 the House shall notify the monitor for the floor division of the House wherein the seat assigned
2356 to said member pursuant to Standing Rule 79 is located as follows:

2357 (i) A member wishing to speak on a bill, resolve or the General Appropriation Bill, or an
2358 amendment thereto, shall notify their floor division monitor no later than 10:00 A.M. on the day
2359 that the bill, resolve, General Appropriation Bill, or amendment thereto, is scheduled to be
2360 considered by the House. Said notification shall include: (1) the number of the bill, resolve
2361 General Appropriation Bill, or amendment thereto, that the member wishes to speak to; and (2)
2362 whether the member wishes to speak in favor of or in opposition to the bill, resolve, General
2363 Appropriation Bill, or amendment thereto.

2364 (ii) A member wishing to speak on a consolidated amendment shall notify their floor division
2365 monitor no later than 45 minutes after the consolidated amendment shall have been first filed
2366 with the Clerk and made available electronically to the members. Said notification shall include:
2367 (1) the number or letter of the consolidated amendment the member wishes to speak to; and (2)
2368 whether the member wishes to speak in favor of or in opposition to the consolidated amendment.

2369 (iii) A member wishing to speak on a conference committee report filed pursuant to Joint
2370 Rule 11B shall notify their floor division monitor no later than 10:00 A.M. on the day the
2371 conference committee report is scheduled to be considered by the House. Said notification shall
2372 include: (1) the bill number of the conference committee report; and (2) whether the member
2373 wishes to speak in favor of, or in opposition to the report. The provisions of this paragraph shall
2374 be inoperative if the conference committee report is filed later than 8:00 P.M. on the day
2375 preceding its consideration by the House.

2376 (b) The monitor for each division shall prepare a list of members of their division notifying
2377 the monitor of said member's desire to speak in favor of a question before the House and a list of
2378 members of their division notifying the monitor of said member's desire to speak in opposition
2379 to a question before the House. Each list shall be arranged in order of the time the monitor
2380 received the notification with the notification received the earliest being first.

2381 (c) Upon completion of the lists required pursuant to subsection (b), the monitors for each
2382 division shall transmit the lists to the Speaker and the Minority Leader. The Speaker shall
2383 combine the lists received from each of the division monitors and, in consultation with the
2384 Minority Leader, shall prepare a consolidated list of members notifying their monitor of the
2385 member's desire to speak in favor of a question before the House and a consolidated list of
2386 members of their division notifying the monitor of said member's desire to speak in opposition
2387 to a question before the House.

2388 (d) The Speaker shall distribute the lists compiled pursuant to subsection (c) to all members
2389 electronically prior to the commencement of the formal session. The Speaker shall distribute the
2390 list compiled pursuant to subsection (a)(ii) as soon as practicable upon completion.

2391 (e) The consolidated lists prepared by the Speaker pursuant to subsection (c) and distributed
2392 to the membership pursuant to subsection (d) shall be the order in which members are recognized
2393 during the debate of the respective question. In recognizing members from said lists, the Speaker
2394 shall, to the extent practicable, alternate between members wishing to speak in favor of the
2395 question and members wishing to speak in opposition to the question.

2396 (f) A member participating remotely may, in lieu of speaking on a bill, resolve, amendment,
2397 consolidated amendment or a conference committee report, submit written remarks in favor of,
2398 or in opposition to, any bill, resolve, amendment, consolidated amendment or conference
2399 committee report to the Clerk before the adjournment of the formal session in which said bill,
2400 resolve, amendment, consolidated amendment or conference committee report was considered by
2401 the House. Said remarks shall be transmitted to the Clerk electronically in a format prescribed by
2402 the Clerk. The Clerk shall include any remarks submitted by a member participating remotely
2403 pursuant to this section in the Journal of the House required to be kept by the Clerk pursuant to
2404 Standing Rule 10 and Remote Rule 2.

2405 Remote Rule 5. (a) Notwithstanding Standing Rules 50 through 52, inclusive, during a formal
2406 session where members are participating remotely a vote on any question shall be by either a
2407 voice vote of the members present and voting pursuant to subsection (b) or a roll call vote of the
2408 members present and voting pursuant to subsection (c). Any question that would require a
2409 standing vote under the standing rules shall be decided by a voice vote of the members present
2410 and voting pursuant to subsection (b).

2411 (b) When a question is put, the sense of the House shall be taken by the voices of the
2412 members, and the Speaker shall first announce the vote as it appears to the Speaker by the sound.

2413 If the Speaker is unable to decide by the sound of the voices, or if the announcement made
2414 thereupon is doubted by a member, the Speaker shall order the division monitors to ascertain the
2415 number of members within in their division voting in the affirmative and the number of members
2416 within in their division voting in the negative, without further debate upon the question. The
2417 division monitors shall report the total vote of their division count to the Speaker. After receiving
2418 the reports of the total vote counts from each of the division monitors, the Speaker shall tally said
2419 votes and then announce the vote.

2420 (c) The sense of the House shall be taken by yeas and nays whenever required by 10 percent
2421 of the members elected or when required pursuant to the Constitution of the Commonwealth.
2422 The Speaker shall state the pending question and shall order the division monitors to commence
2423 the roll call of the members. The division monitors shall call the roll of the members assigned to
2424 said division in alphabetical order. The division monitors shall record the votes of each member
2425 on a form prescribed by the Clerk. Upon completion of the roll call, the division monitors shall
2426 sign the form upon which the roll call for their division was recorded and submit the completed
2427 form to the Clerk. The Clerk shall tally the votes of the members of each division and shall enter
2428 the votes into the electronic roll call machine. Upon completion of the tally and the entry of the
2429 votes into the electronic roll call machine, the Clerk shall notify the Speaker that the vote has
2430 been completed. Upon instruction from the Speaker, the Clerk shall display the tally of the vote
2431 on the 2 monitors in the House Chamber. The Speaker shall then announce the vote.

2432 (d) If a member doubts the presence of a quorum, the Speaker shall order the division
2433 monitors to ascertain the number of members within in their divisions who are present. Any
2434 member confirmed by the division monitor to be participating remotely shall be considered
2435 present. The division monitors shall report the total number of members present to the Speaker.

2436 After receiving the reports of the total number of members present from each of the division
2437 monitors, the Speaker shall tally the numbers and then announce the number of members present.
2438 If, after tallying the numbers from each of the division monitors a quorum is not present, the
2439 Speaker shall order a roll call vote pursuant to subsection (c).

2440 (e) The call for yeas and nays shall be decided without debate. If the yeas and nays have been
2441 ordered before the question is put, the proceedings under subsection (b) shall be omitted.

2442 (f) Except as heretofore provided, any member who shall vote or attempt to vote for another
2443 member or any person not a member who votes or attempts to vote for a member, or any member
2444 or other person who willfully tampers with or attempts to impair or destroy in any manner
2445 whatsoever the voting equipment used by the House, or change the records thereon shall be
2446 punished in such manner as the House determines; and provided further, that such a violation
2447 shall be reported to the committee on Ethics.

2448 Remote Rule 6. No consolidated amendment to any bill offered by the committee on Ways
2449 and Means shall be considered by the House until the expiration of at least 30 minutes after the
2450 consolidated amendment shall have been first filed with the Clerk and made available
2451 electronically to the members. This rule shall not be suspended unless by unanimous consent of
2452 the members present.

2453 Remote Rule 7. No consolidated amendment to any bill offered by the committee on Ways
2454 and Means shall be adopted except by a roll call vote.

2455 Remote Rule 8. Notwithstanding any standing rule to the contrary, with the approval of the
2456 Speaker, a member, officer or employee may take photographs and videos of, and in, the House

2457 Chamber provided said photographs or videos are to facilitate the remote participation in the
2458 formal session by a member.

2459 Remote Rule 9. (a) Notwithstanding any standing rule to the contrary, unless authorized
2460 pursuant to subsection (b) or subsection (c), no member participating in a formal session shall be
2461 recognized more than once on any question before the House without unanimous consent or on
2462 any question before the House for more than 10 minutes without unanimous consent.

2463 (b) The following members may, notwithstanding subsection (a), be recognized more than
2464 once on any question before the House: (1) the Minority Leader; (2) the member carrying the
2465 report of the committee; (3) and the Ranking Minority Member of the committee reporting the
2466 bill.

2467 (c) Notwithstanding subsection (a), after all members have been recognized pursuant to
2468 Remote Rule 4, a member who is the primary sponsor of a bill, resolve or an amendment, or a
2469 designee of said member, may, in addition to being recognized pursuant to Remote Rule 4, be
2470 recognized for purposes of providing rebuttal or further explanation. If a member who is the
2471 primary sponsor of a bill, resolve or amendment or their designee is recognized pursuant to this
2472 subsection a member from the opposite political party designated by the member carrying the
2473 report of the committee or the Ranking Minority Member of the committee reporting the bill
2474 may also be recognized in addition to being recognized pursuant to Remote Rule 4. No member
2475 shall be recognized pursuant to this subsection for more than 5 minutes without unanimous
2476 consent.

2477 Remote Rule 10. Notwithstanding any standing rule to the contrary, any formal session where
2478 members are participating remotely shall be livestreamed on the General Court website. Audio or

2479 video recordings of all such sessions shall be made available to the public on the General Court
2480 website. All House sessions conducted by electronic means shall be broadcast on House
2481 television.

2482 Remote Rule 11. Notwithstanding any standing rule to the contrary, no technical failure that
2483 breaks the remote connection of a member or members of the House of Representatives
2484 participating remotely in a formal session shall invalidate any action taken by the House of
2485 Representatives.

2486 Remote Rule 12. Notwithstanding Standing Rule 49, members participating remotely may
2487 vote in a quorum roll call.

2488 Remote Rule 13. Except as otherwise indicated, Remote Rules 1 through 16, inclusive, shall
2489 not be suspended unless by a 2/3 vote of the members present and voting. Debate upon a motion
2490 for the suspension of Remote Rules 1 through 16, inclusive, shall be limited to 15 minutes and
2491 no member shall speak for more than 3 minutes.

2492 Remote Rule 14. The provisions of any standing or remote rules pertaining to procedures of
2493 the House may be suspended and alternative procedures may be used if said alternative methods
2494 are approved by a 2/3 majority of the committee on Rules and approved, in writing, by the
2495 Speaker and the Minority Leader. The Clerk shall enter any such approvals in the House Journal
2496 for the formal session required to be kept by the Clerk pursuant to Standing Rule 10.

2497 Remote Rule 15. Except to the extent that they conflict with Remote Rules 1 through 16,
2498 inclusive, the standing rules shall remain in full force and effect.

2499 Remote Rule 16. Remote Rules 1 through 16, inclusive, shall remain activated for no longer
2500 than 30 days after being activated by the Speaker; provided, that the House of Representative
2501 shall not operate under remote rules beyond 30 days without the adoption of an Order by a
2502 majority of the House.

2503 [Emergency remote rule historical notes: See House document numbered 4690 of the 191st
2504 General Court; also see House documents numbered 59 and 3929 of the 192nd General Court;
2505 Added to Rules Jul. 7, 2021; Amended Feb. 1, 2023.]

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